STATE OF CALIFORNIA - DEPARTMENT OF GENERAL SERVICES

STANDARD AGREEMENT

STD 213 (Rev. 04/2020)

AGREEMENT NUMBER	PURCHASING AUTHORITY NUMBER (If Applicable)
P2560014	

1. This Agreement is entered into between the Contracting Agency and the Contractor named below:

CONTRACTING AGENCY NAME

California Department of Fish and Wildlife

CONTRACTOR NAME

TBD

2. The term of this Agreement is:

START DATE

Upon DGS approval

THROUGH END DATE

June 30, 2026

3. The maximum amount of this Agreement is:

TBD

4. The parties agree to comply with the terms and conditions of the following exhibits, which are by this reference made a part of the Agreement.

Exhibits	Title	Pages
Exhibit A	Scope of Work	14
Exhibit A Attach 1	Asbestos and Lead Survey Report	19
Exhibit B	Budget Detail and Payment Provisions	4
Exhibit C *	General Terms and Conditions (GTC 02/2025)	*
Exhibit E	Federal Provisions (Federal Funds)	4
Exhibit G	Additional Provisions (Public Works)	20
Std 18	Standard California Nondiscrimination Construction Contract Specifications	2
Drawing	E10-2025-001, Dated June 10, 2025	1 Sheet

Items shown with an asterisk (*), are hereby incorporated by reference and made part of this agreement as if attached hereto.
These documents can be viewed at https://www.dgs.ca.gov/OLS/Resources

IN WITNESS WHEREOF, THIS AGREEMENT HAS BEEN EXECUTED BY THE PARTIES HERETO.

CONTRACTOR

CONTRACTOR NAME (if other than an individual, state whether a corporation, partnership, etc.)

TBD

CONTRACTOR BUSINESS ADDRESS	CITY	STATE	ZIP

PRINTED NAME OF PERSON SIGNING	TITLE
CONTRACTOR AUTHORIZED SIGNATURE	DATE SIGNED

SAMPLE

STATE OF CALIFORNIA - DEPARTMENT OF GENERAL SERVICES

STANDARD AGREEMENT

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AGREEMENT NUMBER	PURCHASING AUTHORITY NUMBER (If Applicable)
P2560014	

STATE OF CALIFORNIA

CONTRACTING AGENCY NAME			
California Department of Fish and Wildlife			
CONTRACTING AGENCY ADDRESS	CITY	STATE	ZIP
1010 Riverside Parkway	West Sacramento	CA	95605
PRINTED NAME OF PERSON SIGNING	TITLE		
Yujie Jin	Branch Chief, Land and Facilities Engineering		
CONTRACTING AGENCY AUTHORIZED SIGNATURE	DATE SIGNED		
CALIFORNIA DEPARTMENT OF GENERAL SERVICES APPROVAL	EXEMPTION (If Applicable)		

SAMPLE

1. Description:

   Provide all labor, tools, equipment, materials, incidentals, permits and taxes necessary to replace siding and sheathing and exterior painting of the Baldwin Lake Ecological Reserve Office Building and other miscellaneous improvements.

2. Location of Services:

   Services shall be performed at Baldwin Lake Ecological Reserve, 44865 North Shore Drive, Big Bear, CA 92314, San Bernardino County

3. Contract Term Date:

   Upon DGS approval through June 30, 2026

4. Time of Completion:

   Construction shall be completed within **TWENTY (20) WORKING DAYS** following the official "Notice of Start Date" from CDFW to the Contractor to commence construction. CDFW may approve additional working days for delays caused by unexpected events or circumstances including but not limited to supply chain disruption and inclement weather. Contractor must advise Contract Manager **IN WRITING** of any unexpected events or circumstances and obtain CDFW approval for any time extension.

5. License Required:

   A – General Engineering Contractor, or
   B – General Building Contractor

6. Items of Work:

   All items of work on the contract form are to be complete in place. In addition, the specified items shall be in accordance with the following and shall include as well as furnish all labor, tools, equipment, materials, permits and taxes necessary to:

   Item 1 - Replacement of all siding on exterior of Office

   Item 2 - Replacement of 30% of the Office sheathing

   Item 3 - Exterior Painting of fascia/rake, exposed rafters, soffit, doors and door frames

   Item 4 - Contingencies are for changes due to unforeseen items of work, and/or adjustments in the quantities of items bid on a unit price basis, as may be determined, and allowed by the Contract Manager. The total amount to be paid under this item may be from zero (if no changes are allowed) to the full amount, as determined by the Contract Manager.

7. The Project Officials during the term of this agreement will be:

CDFW Project Officials	Contractor Project Official(s)
Contract Manager	**Project Director**
Name: Danielle Stewart	Name: **TBD**
Phone: (951) 990-6879	Phone: (XXX) XXX-XXXX
Email: danielle.stewart@wildlife.ca.gov	Email: XXXXXXXXXX
Address: 4775 Bird Farm Rd. Chino Hills, CA 91709	Address: XXXXXXXXXX

8. General:

The Contractor shall visit and determine the actual condition of the site prior to submitting the quote and shall familiarize themselves of the work in place. **Contractor shall investigate conditions character, quality and quantity of surface, and sub-surface materials of obstacles to be encountered. Failure by the Contractor to acquaint himself/herself with site conditions and available information will not relieve him/her from the responsibility for assessing properly the difficulty or cost of successfully performing the work. The submission of a quote will be considered as conclusive evidence that the Contractor has made such examination.** No claim of the Contractor shall be made as a result of different physical conditions of any item or exposed work if such condition is exposed and present at the time of inspection. If any unknown physical condition exists or is not exposed at the time of site inspection, unless noted in these specifications, an equitable adjustment will be made.

All work is to be performed in accordance with the Standard Specifications as stated below, except as provided in the General Conditions, Technical Specifications, and any applicable drawings.

State and Federal Codes:

A. 2025 California Code of Regulations (CCR)
B. 2025 California Administrative Code (CAR), [California Code of Regulations (CCR), Title 24, Part 1]
C. 2025 California Building Code (CBC), Volumes 1, and 2, (CCR, Title 24, Part 2) (Based on 2024 International Building Code with 2025 California Amendments)
D. 2025 California Residential Code (CRC), (CCR, Title 24, Part 2.5), (Based on 2024 International Residential Code)
E. 2025 California Electrical Code (CEC), (CCR, Title 24, Part 3) (2023 National Electric Code (NEC) with 2025 California Amendments)
F. 2025 California Mechanical Code (CMC), (CCR, Title 24, Part 4) (Based on 2024 Uniform Mechanical Code with 2025 California Amendments)
G. 2025 California Plumbing Code (CPC), (CCR, Title 24, Part 5) (Based on 2024 Uniform Plumbing Code)
H. 2025 California Energy Code, (CCR, Title 24, Part 6)
I. 2025 California Historical Building Code, (CCR, Title 24, Part 8)
J. 2025 California Fire Code (CFC), (CCR, Title 24, Part 9) (Based on 2024 International Fire Code)

K. 2025 California Existing Building Code, (CCR, Title 24, Part 10), (Based on the 2024 International Existing Building Code)
L. 2025 California Green Building Standards Code, (CCR, Title 24, Part 11)
M. 2025 California Referenced Standards Code, (CCR, Title 24, Part 12);

NFPA 13 - Automatic Sprinkler Systems w/ CA Amendments	2025 Edition
NFPA 14 - Standpipe Systems w/ CA Amendments	2024 Edition
NFPA17a - Wet Chemical Systems	2024 Edition
NFPA 20 - Stationary Pumps	2025 Edition
NFPA 24 - Private Fire Mains w/ CA Amendments	2025 Edition
NFPA 72 - National Fire Alarm Code w/ CA Amendments	2025 Edition
NFPA 2001 - Clean Agent Fire Extinguishing Systems w/ CA Amendments	2025 Edition

Reference code section for NFPA standards is in 2022 CBC Chapter 35 or 2022 CFC Chapter 80. See Chapter 35 for State California amendments to NFPA standards

N. Reference Code Sections for Applicable Standards:
2025 CBC, Chapter 35
2025 CFC, Chapter 80
O. Title 8 California Code of Regulations (CCR), CAL/OSHA Regulations-Safety Orders issued by Division of Industrial Safety of the State of California
P. Title 19 CCR., Public Safety, State Fire Marshall (SFM) Regulations, List of Federal Codes & Standards (if applicable)
Q. American with Disabilities Act (ADA), Title II or Title III
R. 2025 California Access Compliance Advisory Reference Manual (As prepared by the Division of the State Architect Office, published on January 1, 2025, effective July 1, 2026)
S. Department of Transportation (DOT) Standard Specifications and/or Plans; State of California, DOT, 2025
T. Underwriters Laboratories, Inc. (UL Standards)

Additional Codes:

A. American Concrete Institute (ACI), Latest Edition
B. American Society for Testing and Materials (ASTM), Latest Edition
C. Steel Construction Manual, American Institute of Steel Construction, (AISC), 15th Edition
D. American Welding Society, AWS
E. Sheet Metal and Air Conditioning Contractors National Association (SMACNA)

Additional Documents:

A. Exhibit A, Attachment 1 – Asbestos and Lead Survey Report
B. Drawing: E10-2025-001, dated June 10, 2025, 1 sheet

9. Insurance Requirements:

   The Contractor will be required to supply proof of and maintain liability coverage as outlined in Exhibit G, Insurance, Item 12B – Insurance Requirements of this agreement. These policy types include:

   - Commercial General Liability
   - Automobile Liability
   - Worker's Compensation and Employer's Liability

   ❖ **The above policies must each be endorsed to include <u>"The State of California, its officers, agents and employees as additional insured but only with respect to work performed under the Contract".</u>**

10. Bond Requirements:

    Contractor will be required to supply bonds as outlined in Exhibit G, Item 13 – Contract Bonds which is attached hereto and will be part of the resulting agreement. The bond(s) required for this Agreement include:

    - Payment Bond required if contract cost is $25,000 or more

11. Quality Control:

    The Contractor will be responsible for the completeness of the contract work. The Contractor will be responsible for the progress of the contract work until final completion and acceptance of same by the State and will make such checks on the work as may be necessary to assure conformance with these specifications.

12. Work Schedule:

    The Contractor shall furnish the Contract Manager a proposed work schedule **THREE (3) DAYS PRIOR TO BEGINNING WORK** and The Contractor shall submit at such times as may be requested by the Contract Manager, schedules which shall show the order in which the Contractor proposes to carry on the work with dates at which the Contractor will start the several parts of the work and estimated dates of completion of the several parts.

13. Submittal Process:

    The Contractor shall submit one (1) original of manufacturer's data for all equipment and materials proposed for use on this job, complete with descriptions, information, and performance data to the Contract Manager for approval. Submittals must be approved prior to start of the work identified in the respective submittals.

    One (1) set of submittals shall be returned for use by the Contractor.

14. Clean Up and Disposal of Refuse:

    Upon completion of each maintenance/service activity under this contract, the Contractor must remove all remaining excess materials, waste, rubbish, debris, temporary facilities, and other equipment from the site. Final approval of the work done under these specifications will not be given until the final cleanup meets approval of the CDFW Facility Manager or CDFW designee.

15. Restoration of Improvements:

    Any damage to existing facilities, structures or improvements caused by the Contractor, the Contractor's equipment, or the Contractor's staff during the term of this contract, will be repaired and restored to as good a condition as existed at the time work commenced at the Contractor's own expense.

16. Inability to Provide Services:

    If the Contractor is temporarily unable to provide services as required, CDFW reserves the right to accomplish the work by other means during the period of the Contractor's inability to provide services and will be reimbursed by the Contractor for any costs.

17. Accidents/Damages:

    Damage caused to the equipment covered herein due to fire, abuse, act of God, accident, unauthorized alterations, disasters, the elements, failure of electrical power, misuse, use of unauthorized agents, vandalism or negligence by the State or its officers, agents, or employees are not covered by this agreement except on a time and material basis. Such repairs will be performed by the Contractor at the Contractor's current, published rates at the time service is required, but only after the Contractor has made an estimate of all costs involved and written documentation has been provided to the Institution Contract Liaison or designee.

18. Exclusions:

    Excluded are painting or refinishing of equipment, and the furnishing of supplies, accessories, or devices of any nature, except such items or equipment as may be necessary for the maintenance of the equipment. This agreement does not include service, repair, or replacement of parts required as a result of accident, neglect, abuse, misuse, alteration of equipment, or other improper operation, including but not limited to operation of equipment outside of its specified environmental conditions.

19. Guarantee:

    See Exhibit G, (Additional Provisions, Public Works) Item 54, Guarantee.

20. Specifications:

ROUGH CARPENTRY

PART 1 - PRODUCTS

1.01 PLYWOOD

A. General: Softwood plywood, Us Product Standard PS 1-83, grade stamped by approved testing agency, such as APA, Teco or Pittsburgh Testing Laboratory.

B. Building sheathing shall be CDX plywood. Nailing shall match existing.

1.02 BUILDING PAPER

A. No. 15 asphalt saturated felt or plater building wrap; Tyvek; Typar, or equal.

1.03 FLASHING PAPER

A. Six (6) inch wide strips of two ply reinforced waterproof kraft paper.

PART 2 - EXECUTION

2.01 ROUGH CARPENTRY

A. Workmanship: Accurately cut, fit and solidly fasten items to produce plumb, level, true and rigid work. Do not splice individual framing members between supports. Erect faces of framing members (studs, plates, joists, rafters, headers) in straight, accurate alignment, plumb or level in same plane to receive sheet type finish materials.

2.02 FINISH CARPENTRY

A. Exposed Surfaces: Free from tool marks, torn grain, cross sanding, or any defect.

B. Plywood Siding: Type suitable for exposed locations, thickness, pattern, texture, and species indicated. Where plans show that siding is also used as structural sheathing. Identify each piece by approved agency stamp.

2.03 NAILS, SCREWS, BOLTS, NUTS AND WASHERS

A. Common wire nails as otherwise noted. Match existing sizes. Use finishing nails for finish work. Use galvanized or cadmium plated fastenings for work exposed to weather.

B. Type, size and spacing of nails, when not otherwise indicated on plans shall equal or exceed minimum requirement of Table 2304.9.1. Chapter 23, Wood, California Building Code, 2022 Edition. Nails for siding and other exposed work, aluminum, stainless steel or hot dip galvanized. Secure wood subject to vibration from equipment with annular ring nails.

C. Fasteners shall not penetrate completely through member when opposite side is exposed to view.

2.04 WORKMANSHIP

A. Make connections between members tight, accurate and secure. Place fastenings without splitting wood, predrill when required. Drill bolt holes same size as bolt diameter. Drill holes for lag screws same size as thread root diameter; and counterbore, same depth and diameter as shank. Turn lag screws into place; do not drive. Provide bolts and lag screws with washers under every head and nut bearing on wood. Tighten bolts and lag screws at installation; carefully re-tighten just before closing in, or at completion of project.

- End of Section -

FIBER CEMENT SIDING

PART 1 – GENERAL

1.1 Scope

A. Furnish and install fiber-cement siding and fiber-cement trim and accessories where shown on drawings or as specified herein.

1.2 Submittals

A. Submit four (4) copies of specifications, installation data and other pertinent manufacturer's literature.

1.3 Product Handling

A. Stack fiber-cement siding on edge or lay flat on a smooth, level surface. Protect edges and corners from chipping. Store sheets under cover and keep dry prior to installation.

1.4 Job Condition

A. Install weather-resistive barriers to dry surfaces.

B. Repair any punctures or tears in the weather-resistive barrier prior to the installation of the siding.

C. Protect siding from other trades.

1.5 Warranty

A. Provide written warranty against manufacturing defects in fiber-cement lap siding for thirty (30) years.

PART 2 - PRODUCTS

2.1 Lap Siding: HardiePlank HZ5 Lap or approved equal

A. Non-asbestos fiber-cement siding to comply with ASTM C1186 Type A Grade II.

B. Siding to meet the following building code compliance National Evaluation Report No. NER 405 (BOCA, ICBO, SBCCI); City of Los Angeles, Research Report No. 24862; Metro Dade County, Florida Acceptance No. 94-1234.04; US Department of Housing and Urban Development Materials Release 1263a; California DSA PS-019; and City of New York MEA 223-93-M. Non-asbestos fiber-cement siding to be non-combustible when tested in accordance with ASTM test method E136.

C. Type: Cedarmill – Statement Collection - 8 ¼” Width / 7” Exposure

D. Color: Timber Bark

2.2 Trim: HZ5 Trim as manufactured by James Hardie Building Products, Inc., or approved equal.

A. Thickness: 1”

B. Width: 3.5”

C. Texture: Smooth – Statement Collection **(Textured is acceptable if smooth is unavailable.)**

D. Color: Timber Bark

2.3 Fasteners

A. Wood framing: Ninety-three-hundredths inch (0.093”) shank x two hundred twenty-two-hundredths inch (0.222”) head x two inch (2”) corrosion resistant siding nails. Use two-and-a-half inches (2.5”) finishing nails for Artisan Accent Trim.

PART 3 - EXECUTION

3.1 Surface Conditions

A. Clean surfaces thoroughly prior to installation.

B. Prepare surfaces using the methods recommended by the manufacturer for achieving the best result for the substrate under the project conditions.

C. Install a water-resistive barrier is required in accordance with local building code requirements.

D. The water-resistive barrier must be appropriately installed with penetration and junction flashing in accordance with local building code requirements.

E. Install Engineered for ClimateTM HardieWrapTM weather barrier in accordance with local building code requirements.

F. Use HardieWrapTM Seam tape and joint and laps.

G. Install and HardieWrap TM flashing, HardieWrap TM Flex Flashing.

3.2. Installation – HardiePlank HZ5 Lap Siding

A. Starting: Install a minimum one-quarter (¼) inch thick lath starter strip at the bottom course of wall. Apply planks horizontally with minimum one-and-a-quarter (1 ¼) inch wide laps at the top. The bottom edge of the first plank overlaps the starter strip.

B. Allow minimum one(1)-inch vertical clearance between roofing and bottom edge of siding.

C. Align vertical joints of the planks over framing members.

D. Maintain clearance between siding and adjacent finished grade.

E. Locate splices at least one stud cavity away from window and door openings.

F. Use off-stud metal joiner when vertical joints occur between framing members. Position metal joiner so that the bottom lip is resting on the solid course of planks. Fasten plank to the framing. Position and fasten abutting plank into place insuring that the lower edges of the two planks align. Locate metal joiner centrally behind the joint. Locate off-stud splices with a minimum of two stud cavities from wall corners and stagger all subsequent course splices at minimum twenty-four(24)-inch intervals when located in the same wall cavity.

G. Wind Resistance: Where a specified level of wind resistance is required HardiePlank lap siding is installed to framing members and secured with fasteners described in Table No. 2 in National Evaluation Service Report No. NER – 405.

3.4 Finishing

A. Hardie siding come pre-finished and colored

-End of Section

PAINTING

PART 1 - GENERAL

1.01 WORK INCLUDED

A. All labor, material, transportation and shop services required for interior and exterior painting as described herein, and for all interior and exterior surfaces not specifically mentioned herein but shown on the drawings.

B. In general, all exterior and interior surfaces on wood, metal, primed metal, doors.

1.02 QUALITY ASSURANCE

A. Manufacturers Direction: Follow manufacturers printed directions for application of paints and finishes. Do not add materials to paints, except as recommended by the manufacturer.

B. Certifications and Affidavits: When requested by Engineers, submit manufacturers affidavits certifying compliance of materials with Engineers specifications.

C. Paints shall comply with State of California Air Resources Board Rule 1113. Paints containing lead in excess of point-zero-six (0.06) percent by weight of the total nonvolatile content shall not be used. Paints containing zinc chromate or strontium chromate shall not be used. Interior latex paints are not permitted in toilet rooms.

1.03 SUBMITTALS

A. Materials List: Submit complete list of proposed manufacturers materials for Engineer approval. Completely describe all materials.

B. Colors and Samples: Submit samples of each color and type of finish for Engineers approval. Samples shall be completely finished will all coats specified and over same materials as those in the work. When requested by Engineers, provide job applied samples of large size on final surfaces. Color and finishes shall be selected by the Engineers. Approximately ten (10) percent accent colors for bidding purposes.

1.04 PRODUCT DELIVERY, STORAGE AND HANDLING

A. Identifications: Deliver materials to job site in manufacturers original labeled unopened containers, printed with all information necessary for complete identification.

B. Handling: Protect materials against rain, dust and drying in container.

1.05 JOB CONDITIONS

A. Environmental Requirements: Do not paint in wet or dusty conditions or in temperatures

below sixty-five degrees Fahrenheit (65 F).

B. Ventilation: In interior work, provide fan ventilation to remove paint fumes, especially when spray application is employed. Use spark proof fans.
C. Spray painting: Employ spray painting only in accordance with the requirements of the State Division of Industrial Safety and other jurisdictions.

D. Lighting: See that areas requiring painting work have been provided with adequate artificial lighting where daylighting is insufficient. Do not proceed otherwise.

PART 2 - PRODUCTS

2.01 MATERIALS

A. Paints shall be best quality as regularly manufactured by recognized paint and varnish manufacturers. Material not bearing manufacturer's identification as standard best grade of regular line are not acceptable. Materials shall be delivered to jobsite in original containers bearing manufacturer's name. Paint application shall comply with manufacturer=s recommendation and standards.

B. Paints and finishes shall cover thoroughly, brush well, flow without sags or laps, and wear well under conditions of use and weather. Color pigments shall be non-fading.

2.02 EXTERIOR COLORS

A. Provide manufacturer's colors and pattern for the items listed below.

1. Doors, Door Frames

2. Facia/Rake, exposed rafters, soffit

2.02 EXTERIOR PAINT SCHEDULE

The site Manager shall select up to two (2) colors.

PART 3 - EXECUTION

3.01 EXAMINATION

A. See that the following conditions are obtained before proceeding with painting and finishing. Do not proceed otherwise. Start of work will indicate acceptance of conditions as being satisfactory.

1. Surfaces are complete, dry, clean with nails set, and are in good condition to receive finish.

2. Surfaces are not coated with material that would reduce or impair adhesion of paint

finishes.

3.02 PREPARATIONS

A. Cleaning: Sweep and vacuum clean floors: Damp mop in addition, if necessary.

B. Protection:

1. Protect floors, equipment, furnishings, and adjoining work from paint spots or overlaps.

2. Protect aluminum, or other surfaces from which removal of paint would cause injury, by covering with masking tape, paper or other approved means, and remove when directed.

3. Protect painted or finished surfaces until dry and not tacky.

C. Other Preparations:

1. Hardware shall be removed by Carpenter or else masked during painting operations.

2. Exterior wood doors shall be removed to paint the bottom edge.

3. Galvanized metal shall be acid treated with dilute acetic acid or with solution of four ounces (4 oz.) copper sulphate to one (1) gallon of water or use metal etching thinner. Allow to dry twelve (12) hours; brush off any residue.

4. Concrete cleaning and preparation as specified.

5. Sand interior surface between coats with fine sandpaper.

6. Putty nail holes, cracks etc., after first coat or as required.

3.03 FIELD QUALITY CONTROL

A. Use good quality brushes adaptable for each type of work.

B. There shall not be sags, laps, runs, skips, heavy brush marks, or other defects in the finished work.

C. Cut in true to line.

D. Allow twenty-four (24) hours minimum between coats, or longer dried hard.

E. Coats specified herein are in addition to shop coats.

F. Paints and finishes are to cover well. When undercoats, stains, or discolorations show through final coat, apply additional coats at Contractor=s expense until paint is of uniform color and coverage is complete.

G. Repaint or finish any damaged finished work to match new undamaged work.

3.04 ITEMS NOT TO BE PAINTED

Windows.

Materials that are a finish in themselves, unless otherwise specified.

Metal roofing.

The fiber cement siding comes pre-colored and finished therefore it does not need paint.

3.06 EXTERIOR PAINTING

A. All exterior wall surfaces (excluding factory-finished surfaces) shall receive a minimum of one (1) prime coat and two (2) finish coats of paint. Exterior walls of buildings shall be factory-finished metal. Steel personnel doors shall be field finished.

3.07 WORKMANSHIP

A. All materials shall be applied and cut in neatly to dry uniformly to the color and sheen specified and shall be free from excessive runs, sags, wrinkles, shiners, streaks and brush marks.

B. All materials shall be applied in accordance with manufacturers' directions as printed on container. Any thinning required shall be done in the manner and exclusively with the type of reducer recommended.

C. Vary each coat of paint in shade from the preceding coat in a manner that will make each coat readily distinguishable without affecting finish color. Touch up all blemishes.

D. In enclosed spaces, application and drying of paint shall be performed only:

1. When temperature is sixty-five degrees Fahrenheit (65 F) or above, maintained constantly to prevent condensation.

2. When ventilation is adequate to maintain humidity lower than the dew point of the coldest wall.

E. Enamel and varnish undercoats shall be sanded smooth prior to recoating.

F. End grain wood and door edges shall be finished providing the same appearance as the remainder of the wood surface.

G. No exterior painting shall be undertaken at temperatures under fifty degrees Farhenheit (50 F), or immediately following rain, frost or dew. Safe levels for painting shall be determined by use of an electronic moisture meter.

H. The areas in which Contractor has been conducting his/her work shall be left in a clean and

orderly condition with all paint spots, rags, and discarded equipment removed.

I. Do not paint finish hardware.

J. Paint rough hardware same color as trim to which it is attached.

K. Exposed piping, conduit, ductwork, and hangers, color and texture of adjacent surfaces. When adjacent surfaces, unpainted, paint color as directed.

3.08 CLEANING

A. Surfaces: remove all paint spots and stains from surfaces that were not to be painted, taking care not to damage such surfaces in so doing. Repair, replace or refinish damaged work as directed.

B. Glass Cleaning: Remove paint spots.

Asbestos / Lead Limited Renovation Survey

Baldwin Lake Ecological Reserve
Hwy 18 N Shore Drive
Big Bear City, CA 92314

Prepared for:
California Department of Fish & Wildlife
C/O Deanna Garcia

Prepared by:
Charles Taylor Environmental Technical Services
301 Merritt 7
2nd Floor
Norwalk, CT 06851
Phone: 800-408-9016
Email:enviro@charlestaylor.com

Date:
05/01/2025

Project Number, Claim #:
2128594

Charles Taylor Environmental Technical Services

Table 1. Asbestos Results –
Hwy 18 N Shore Drive, Big Bear City, CA 92314
Project/Claim #2128594

Sample Number	Material Description	Material Location	Material Condition/ Friability	Analytical Result	Estimated Quantity
A01-A03	Wallboard, Joint Compound	Office #1, Office #2, Storage Area	Good/NF	NAD	1,200 ft^2
B04-B06	12”x12” Tan Floor Tile & Mastic	Storage Area Back Entry, Front Entry	Good/NF	NAD	30 ft^2
C07-C09	4” Black Cove Base & Mastic	Lobby, Office #2, Storage Area	Good/NF	NAD	600 ft^2

N/A: Not applicable
NAD: Asbestos not detected in quantifiable concentrations.
F/Friable: Material that, when dry, may be easily crumbled, pulverized, or reduced to powder by hand pressure.
NF/Non-friable: Material that, when dry, may not be crumbled, pulverized, or reduced to powder by hand pressure.

Charles Taylor Environmental Technical Services

Table 2. Lead Results –
Hwy 18 N Shore Drive, Big Bear City, CA 92314
Project/Claim #2128594

Sample Number	Location	Component/Substrate	Condition	Color	Result
L-01	Exterior	Wall – Wood	Fair	Brown	<0.1 NEG
L-02	Exterior Restroom	Wall – Concrete	Intact	Brown	<0.1 NEG
L-03	Men's Restroom	Wall – Concrete	Intact	White	<0.1 NEG
L-04	Women's Restroom	Wall – Concrete	Intact	White	<0.1 NEG
L-05	Exterior of Main Building	Overhang – Wood	Intact	Brown	<0.1 NEG
L-06	Office #1	Wall – Wallboard	Intact	White	<0.1 NEG
L-07	Office #2	Wall – Wallboard	Intact	White	<0.1 NEG
L-08	Lobby	Wall – Wallboard	Intact	White	<0.1 NEG
L-09	Lobby	Wall – Wood	Intact	White	<0.1 NEG
L-10	Lobby	Posts – Wood	Intact	White	<0.1 NEG
L-11	Lobby	Beams – Wood	Intact	White	<0.1 NEG
L-12	Storage Area	Wall – Wallboard	Intact	White	<0.1 NEG

Lead-Based Paint (LBP): Paint or other surface coating that contains lead more than 1.0 milligrams per centimeter squared (mg/cm2) or 5,000 parts per million (0.7 or 600 parts per million for Los Angeles County). LBP removal and disposal must be performed in accordance with CDPH Regulations as well as California OSHA requirements.

Lead-Containing Paint (LCP): Painted material or surfaces containing lead levels between 0.1 and 1.0 mg/cm2 or 600 to 5000 ppm of lead. LCP removal and disposal must be performed in accordance with California OSHA regulations and can be handled by a regular contractor who has prepared a California OSHA lead compliance plan/program for the protection of its workers. LCP is not a hazard to occupants per the EPA, HUD, and Cal/DPH and thus not regulated by those agencies.

Lead-Safe Paint (LSP): Painted material or surfaces containing lead levels by XRF as <0.1 mg/cm2 or <90 ppm by FAA is equivalent to the lead amount in current cans of paint sold over the counter throughout the US (approved by the Consumer Product Safety Commission).
Charles Taylor Environmental highly recommends that a qualified abatement contractor perform work where lead concentration is equal to or above 600 parts per million and/or 1.0 milligram per square centimeter or where regulated levels of lead are identified.

1 Introduction

The purpose of this report is to establish the findings of the Limited Renovation Survey performed at the subject site. The survey was performed to determine asbestos and/or lead content, if any, within the materials that may be disturbed during limited renovations at the subject property. Materials that may possibly contain asbestos/lead, yet not discussed within this report must be presumed to be Asbestos Containing Material (ACM) or Lead-based Paint (LBP) until laboratory analysis proves otherwise.

The following items provide the general parameters and scope of this survey report:

- Inspected by: Scott Haley
- CSST Certification #, CDPH Certification #: 03-3512, LRC-00006374
- Scope of Inspection Areas: Office #1, Office #2, Storage Area, Front Entry, Lobby, Exterior of Main Building, Exterior of Restrooms, Men's Restroom, Women's Restroom
- **This is a modified survey, and results are limited to the specific areas and materials sampled. This report is not valid for use outside of the specific areas slated for renovation at this exact time or by individuals not associated with the currently proposed renovation work.**

2 Field Survey and Analytical Methodology

2.1 Asbestos

Bulk samples of suspect ACMs were obtained by cutting small pieces of the material and placing the bulk pieces into labeled sample containers. To ensure the samples are representative of materials in the building, bulk samples were cut (where feasible) to a depth such that the entire thickness of the suspect ACM was sampled. Sampling tools were cleaned by wiping with disposable wet cloths after each sample was collected to prevent cross-contamination of asbestos fibers, if present. Sampling locations and material types were recorded on the sample location diagram and chain-of-custody sheets, which are provided in the attachments.

The bulk samples were transported under chain-of-custody to AIH Laboratory for analysis. AIH is a participating laboratory in the National Institute of Standards and Technology (NIST)-administered National Voluntary Laboratory Accreditation Program (NVLAP). (NVLAP), Certification Number 500079-0. In California, laboratories should have dual certification under the California Water Boards, Environmental Lab Accreditation Program (ELAP). Laboratory testing was conducted in compliance with Appendix A, Subpart F, 40 CFR Part 763, Section 1, Polarized Light Microscopy. All bulk samples submitted for testing were analyzed for asbestos content by PLM using "EPA Interim Method #600/R-93/116 (polarized light microscopy with optical dispersion staining)". **See attached analytical report for address and phone number of the laboratory.**

2.2 Lead

The procedures followed during the inspection are based on the highest industry standards used for residential properties which can be found in the United States Environmental Protection Agency (EPA) “Lead: Renovation, Repair and Painting Guidelines” (EPA 40 CFR Part 745, April 22, 2008 - Part II). The following is a general description of sampling activities: Lead sampling painted/coated surfaces that will be impacted by emergency repair and renovation activities were identified and sampled accordingly. The purpose of the inspection was solely to identify surface coatings that are lead-based paint (LBP) or lead-containing paint (LCP). Surfaces not slated for removal were not sampled and MUST be assumed to contain LBP unless further testing confirms the absence of regulated levels of lead in paint. Sampling of painted/coated surfaces with suspect LBP/LCP were completed by removal of approximately 2 square inches of paint from accessible and suspect painted/coated surfaces. If XRF analysis was performed, sampling was completed using an X-Ray Fluorescence Analyzer (XRF). The sampled surfaces may include, but not limited to, the following: walls, baseboards, window components, door components, crown molding, wainscoting, wood flooring varnish, eaves, stairwell rails, etc.

Note that both the US EPA and the California Department of Public Health (CDPH Title 17 California Code of Regulations) define LBP as any paint or other surface coating containing an amount of lead equal to or exceeding 1.0 milligram per square centimeter (mg/cm^2) surface area of lead or 0.5 % lead by weight. In California, Title 17 regulates residential *and* public buildings. “Public building” means a structure, or part of a structure, and its land, which is generally accessible to the public, including but not limited to, schools, daycare centers, museums, airports, hospitals, stores, convention centers, government facilities, office buildings and any other building which is not an industrial building or a residential building. LBPs are regulated in large part by the intent of the projects. If the LBP is disturbed incidental to a renovation, then EPA RRP applies. If the LBP is disturbed to abate a lead hazard, then all requirements of the CDPH Title 17 are applicable.

The California Division of Safety and Health (DOSH) or Cal/OSHA regulates all construction-related work where an individual may be exposed to lead, regardless of the lead concentration in paint or other surface coatings. Objective data showing that a specific paint or coating contains less than 0.06 % lead by weight (equivalent to 600 parts per million [ppm]) constitutes a “negative initial determination” whereby that paint/coating may be “installed” or otherwise handled in an intact state by non-protected/trained personnel. However, any other activities such as cutting, sanding, scraping, manual demolition, etcetera, require compliance with Cal/OSHA Title 8 CCR Section 1532.1 irrespective of lead content.

All lead laboratory testing was conducted in compliance with US EPA Method SW 846 3050B/7000B flame atomic absorption spectrometry analysis by the laboratory listed above. See attached analytical report for address and phone number as needed.

3 Results of Analysis

3.1 ASBESTOS

Quantifiable detection limits using this type of analysis are approximately one percent. For materials in which asbestos is detected, but at levels below one percent, the result is reported as "<1%," but not further quantified. For those materials where asbestos was not detected, even in trace amounts, results are reported as non-detect (ND). Materials containing one-tenth of one percent or greater asbestos (> 0.1%) are considered asbestos-containing construction materials (ACCMs) according to California Occupational Safety and Health Administration (OSHA) regulations, and materials containing greater than one percent (>1%) asbestos are considered to be ACMs according to federal regulations.

Homogeneous material is considered NOT to contain Asbestos ONLY if the results of ALL samples required to be collected from the area show asbestos in amounts of less than the regulated amount (<0.1% in California). A homogeneous area shall be determined to contain Asbestos (ACM) based on a finding that the results of at least one sample collected from that area shows that asbestos is present (40 CFR 763.87). Laboratory results and chain of custody are attached.

A summary of materials sampled, condition, relative quantity, and results can be found in the attached table for easy review and distribution.

3.2 LEAD

Lead-Based Paint (LBP): Paint or other surface coating that contains lead in excess of 1.0 milligrams per centimeter squared (mg/cm^2) or 5,000 parts per million (0.7 or 600 parts per million for Los Angeles County). LBP removal and disposal must be performed in accordance with CDPH Regulations as well as California OSHA requirements.

Lead-Containing Paint (LCP): Painted material or surfaces containing lead levels between 0.1 and 1.0 mg/cm^2 or 600 to 5000 ppm of lead. LCP removal and disposal must be performed in accordance with California OSHA regulations and can be handled by a regular contractor who has prepared a California OSHA lead compliance plan/program for the protection of its workers. LCP is not a hazard to occupants per the EPA, HUD, and Cal/DPH and thus not regulated by those agencies.

Lead-Safe Paint (LSP): Painted material or surfaces containing lead levels by XRF as <0.1 mg/cm^2 or <90 ppm by FAA is equivalent to the lead amount in current cans of paint sold over the counter throughout the US (approved by the Consumer Product Safety Commission).

A summary of materials sampled, condition, and results can be found in the attached table for easy review and distribution.

4 Executive Summary / Recommendations

In light of Charles Taylor Environmental's site assessment and analytical results, the following recommendations should be adhered to in order to eliminate the potential exposure of individuals to airborne asbestos fibers or lead based paint:

- ✓ Proceed normally with renovations if NO Asbestos/Lead was detected.
- ✓ Properly remove all ACM/ACCM or LBP/LCP that may be disturbed.
- ✓ Regularly monitor ACM/ACCM or LBP/LCP that is currently in good condition.
- ✓ Properly repair or remove all damaged ACM/ACCM and/or LBP/LCP.
- ✓ Adhere to the following regulatory requirements.
- ✓ If "any level" of asbestos is detected, Cal/OSHA still requires applicable worker protections, training, communication, notification, and engineering controls in accordance with CCR Title 8 §1529.

5 Regulatory Requirements

5.1 ASBESTOS

This survey was performed in compliance with all applicable requirements of the Asbestos Hazard Emergency Response Act (AHERA) 40 CFR 763, Cal/OSHA Asbestos Construction Standard Title 8 CCR §1529, The South Coast Air Quality Management District (SCAQMD) Rule 1403, as well as the National Emissions Standards for Hazardous Air Pollutants (NESHAP) 40 CFR 61 Subpart M.

California EPA is divided into 35 local air districts, which may have additional regulations in addition to NESHAPs. The South Coast Air Quality Management District (SCAQMD) Rule 1403 is a prominent example.

Current applicable Federal, State and Local statutes specify work practice requirements for demolition and/or renovation activities, and the associated disturbance of asbestos-containing material, as well as the storage and disposal of asbestos-containing waste material. Proper notification, removal techniques for asbestos-containing material, clean-up procedures and waste storage and disposal requirements are mandated in connection with renovation or demolition activities. Mandatory ten days or emergency asbestos removal notification is required by EPA and the South Coast Air Quality Management District (SCAQMD Rule 1403) these agencies require proper notification prior to the removal of 100 square feet and over of ACM. Other air districts, such as the Bay Area Air Quality Management District (BAAQMD), require ten-day notification prior to 100 linear or square feet of asbestos disturbance. Similarly, the Bay Area Air Quality Management District (BAAQMD Regulation 11, Rule 2) has a 100 linear and 100 square feet, and the San Diego Air Pollution Control District (SDAPCD Rule 1206) has a notification threshold of 100 square feet.

Current Occupational Safety and Health Administration (OSHA) Federal, State (Cal/OSHA) and local regulatory agencies mandated that ACM regardless of quantity shall be handled (e.g., removal, repair, etc.) by Asbestos trained and qualified individuals or Contractors. These identified ACMs should be removed by State licensed Asbestos Abatement Contractors prior to any demolition or construction activities if these ACMs would be disturbed or impacted.

Registration with Cal/OSHA is required for contractors and employers that remove asbestos having an asbestos fiber content of more than 0.1% and 100 square feet or more of surface area of asbestos-containing material. Abatement contractors must also be licensed by the California Contractors State Licensing Board (CSLB) for asbestos abatement.

Where disturbed ACM is >1% asbestos, a Procedure 5 notification to the local NESHAP enforcement authority (South Coast Air Quality Management District- SCAQMD) must be submitted along with a written scope of work and be approved prior to the start of abatement activities. Areas covered by SCAQMD include Los Angeles County, Orange County, Riverside County, and San Bernardino County.

It is Federal, State and Local agency requirements to maintain proof of compliance (asbestos handling records) and disposal of asbestos) (waste chain of custody) by owner. Asbestos responsibility and ownership are forever. An EPA/State of California certified and approved Asbestos Abatement Contractor and Hazardous Waste Hauler must perform the asbestos abatement and decontamination, and transport to a State approved landfill.

5.2 LEAD

The California Department of Public Health currently defines LBP as paint with lead levels:

- Equal to or exceeding 1.0 milligram per square centimeter (mg/cm^2) or 0.5 percent (%) by weight.

However, the California Occupational Safety and Health Administration regulates paint with lead levels:

- Equal to or exceeding 0.1 mg/cm^2 or 0.06 percent (%) by weight.

Lead-Based Paint (LBP): Paint or other surface coating that contains lead in excess of 1.0 milligrams per centimeter squared (mg/cm^2) or 5,000 parts per million (0.7 or 600 parts per million for Los Angeles County). LBP removal and disposal must be performed in accordance with CDPH Regulations as well as California OSHA requirements.

Lead-Containing Paint (LCP): Painted material or surfaces containing lead levels between 0.1 and 1.0 mg/cm^2 or 90 to 5000 ppm of lead. LCP removal and disposal must be performed in accordance with California OSHA regulations and can be handled by a regular contractor who has prepared a California OSHA lead compliance plan/program for the protection of its workers. LCP is not a hazard to occupants per the EPA, HUD, and Cal/DPH and thus not regulated by those agencies. Lead paints below 600 ppm are unlikely to cause an overexposure if not disturbed by a trigger task, such as demolition, scraping, sanding, etc.

Lead-Safe Paint (LSP): Painted material or surfaces containing lead levels by XRF as <0.1 mg/cm^2 or <90 ppm by FAA is equivalent to the lead amount in current cans of paint sold over the counter throughout the US (approved by the Consumer Product Safety Commission).

Charles Taylor Environmental highly recommends that a qualified abatement contractor perform work where lead concentration is equal to or above 600 parts per million and/or 1.0 milligram per square centimeter or where regulated levels of lead are identified.

The disposal characterization of suspect lead contaminated wastes is nuanced in California, and it starts with the **Total Threshold Limit Concentration** (TTLC) waste characterization test. Depending on the result of the TTLC, further **Soluble Threshold Limit Concentration** (STLC) and **Toxicity Characteristic Leaching Procedure** (TCLP) testing may be required. Therefore, it recommended to check with the laboratory on required amounts or mass of wastes to profile.

6 Limitations

This survey was conducted in conformance with EPA and OSHA Guidelines. Charles Taylor Environmental utilizes established best practices and techniques in accordance with regulatory standards while performing this survey. Charles Taylor Environmental cannot be responsible for changing conditions that may alter relative exposure risk or for future changes in accepted methodology. Charles Taylor Environmental does not guarantee either expressed or implied that all asbestos/lead materials were sampled during this survey. Charles Taylor Environmental was retained only to perform the asbestos/lead survey on accessible materials within the scope of work. The findings shall only be applicable to the samples taken, the exact sample locations, at the time that the samples were collected. In some cases, hidden or indistinguishable materials may not have been sampled. Materials that were not sampled shall be presumed to be ACM/LBP. All quantities are visually estimated. The owner, operator, or abatement contractor must verify quantities prior to abatement or any financial transactions involving these materials. Finally, Charles Taylor Environmental shall not be held responsible for the deficiencies or omissions of others in relation to the services contracted herein.

7 Qualifications

Individuals comprising the organization of Charles Taylor Environmental are certified by the State of California Division of Occupational Safety and Health (Cal/OSHA) as Asbestos Consultants and Site Surveillance Technicians as well as accredited by the State of California Department of Public Health Childhood Lead Poisoning Protection Branch for Lead Related Construction inspection/sampling the U.S. Department of Housing and Urban Development (HUD, and the U.S. Environmental Protection Agency (EPA). The pertinent certifications conform to the United States and California requirements that all refresher courses remain current. Note that Asbestos Consultants must maintain current accreditation as a Building Inspector, Contractor/Supervisor, Project Designer, and Management Planner. Site Surveillance Technicians must be current as a Building Inspector and Contractor/Supervisor.

Any individual performing services as an asbestos consultant or site surveillance technician as referenced and defined in §1529(b) of Title 8 of the California Code of Regulations must apply for and obtain a certification pursuant to this article. This does not apply to individuals who perform preliminary site assessments or other such building inspection activities which may identify asbestos-containing construction materials, but which are not for the primary purpose of finding asbestos-containing construction materials in buildings and evaluating the materials for the need of asbestos abatement. (Title 8 CCR §1529 and § 341.15).

"Asbestos consultant" means any person who contracts to provide professional health and safety services relating to asbestos-containing construction material as defined in this subsection, which comprises 100 square feet or more of surface area. The activities of an asbestos consultant include building inspection, abatement project design, contract administration, sample collection, preparation of asbestos management plans, clearance monitoring, and supervision of site surveillance technicians as defined within §7180, Business and Professions Code; and Sections 60.5, 6308, and 9021.5, Labor Code. Reference: Sections 7184 and 7185, Business and Professions Code; Sections 9021.5, 9021.6, and 9021.8, Labor Code; and Section 1529, Title 8, California Code of Regulations.

“Certified lead inspector/assessor” means an individual who has received a certificate or an interim certificate from the Department as a “certified lead inspector/assessor”. Note: Authority cited: Sections 105250, 124160 and 131200, Health and Safety Code. Reference: Sections 105250, 124160 and 131051, Health and Safety Code.

“Certified lead sampling technician” means an individual who has received a certificate or an interim certificate from the Department as a “certified lead sampling technician”. Note: Authority cited: Sections 105250, 124160 and 131200, Health and Safety Code. Reference: Sections 105250, 124160 and 131051, Health and Safety Code.

Signature and Consultant Certification

Andrew Geary
Report prepared by:

Scott Haley
Inspector Name
CSST Certification # 03-3512
CDPH Certification # LRC-00006374

Michael Nave
Senior Reviewer Name
Certified Asbestos Consultant # 07-4253
CDPH Certification # LRC-00002907, 2906

Attachments:
Results Summary Tables
Laboratory Results
Chain-of-Custody
Site Diagram
Consultants/Technicians Certification

AIH LABORATORY
FOCUSED ON QUALITY
2556 W Woodland Dr Anaheim, CA 92801

BULK ASBESTOS FIBER ANALYSIS

BY POLARIZED LIGHT MICROSCOPY

NVLAP TESTING
NVLAP LAB CODE 500079-0
Phone:(562) 860-2201
www.aihlab.com

Client Name: Charles Taylor Environmental Technical Services
Project Manager: Kyle Gamez
Client Address: 301 Merritt 7, 2nd Floor, Norwalk, CT 06851
Project Number: 2128594
Project Location: 18 N Shore Dr, Big Bear City, CA, 92314

Lab Batch Number: 2509465
Samples Submitted: 9
Samples Analyzed: 9
Analysis Method: EPA 600/R-93-116 & EPA 600/M4-82-020

Lab ID: 250946501 **Client ID:** A01

Layer	Layer Description	Asbestos Type %	Other Fibrous Material %	Other Non Fibrous Material
1.	White compacted powdery material with paint	**None Detected**	None Detected	JC/Binder
2.	White chalky material with paper	**None Detected**	Cellulose 5%, Glass Fibers 2%	Gypsum/Binder

Lab ID: 250946502 **Client ID:** A02

Layer	Layer Description	Asbestos Type %	Other Fibrous Material %	Other Non Fibrous Material
1.	White compacted powdery material with paint	**None Detected**	None Detected	JC/Binder
2.	White chalky material with paper	**None Detected**	Cellulose 5%, Glass Fibers 2%	Gypsum/Binder

Lab ID: 250946503 **Client ID:** A03

Layer	Layer Description	Asbestos Type %	Other Fibrous Material %	Other Non Fibrous Material
1.	White compacted powdery material with paint	**None Detected**	None Detected	JC/Binder
2.	White chalky material with paper	**None Detected**	Cellulose 5%, Glass Fibers 2%	Gypsum/Binder

Lab ID: 250946504 **Client ID:** B04

Layer	Layer Description	Asbestos Type %	Other Fibrous Material %	Other Non Fibrous Material
1.	Tan floor tile	**None Detected**	None Detected	Binder/Filler
2.	Black asphaltic mastic	**None Detected**	None Detected	Mastic/Binder, Asphalt/Binder

Lab ID: 250946505 **Client ID:** B05

Layer	Layer Description	Asbestos Type %	Other Fibrous Material %	Other Non Fibrous Material
1.	Tan floor tile	**None Detected**	None Detected	Binder/Filler
2.	Black asphaltic mastic	**None Detected**	None Detected	Mastic/Binder, Asphalt/Binder

AIH LABORATORY
FOCUSED ON QUALITY
2556 W Woodland Dr Anaheim, CA 92801

BULK ASBESTOS FIBER ANALYSIS

BY POLARIZED LIGHT MICROSCOPY

NVLAP TESTING
NVLAP LAB CODE 500079-0
Phone:(562) 860-2201
www.aihlab.com

Client Name: Charles Taylor Environmental Technical Services
Project Manager: Kyle Gamez
Client Address: 301 Merritt 7, 2nd Floor, Norwalk, CT 06851
Project Number: 2128594
Project Location: 18 N Shore Dr, Big Bear City, CA, 92314

Lab Batch Number: 2509465
Samples Submitted: 9
Samples Analyzed: 9
Analysis Method: EPA 600/R-93-116 & EPA 600/M4-82-020

Lab ID: 250946506 **Client ID:** B06

Layer	Layer Description	**Asbestos Type %**	Other Fibrous Material %	Other Non Fibrous Material
1.	Tan floor tile	**None Detected**	None Detected	Binder/Filler
2.	Black asphaltic mastic	**None Detected**	None Detected	Mastic/Binder, Asphalt/Binder
3.	Grey compacted powdery material	**None Detected**	None Detected	Binder/Filler

Lab ID: 250946507 **Client ID:** C07

Layer	Layer Description	**Asbestos Type %**	Other Fibrous Material %	Other Non Fibrous Material
1.	Black flat rubbery material	**None Detected**	None Detected	Binder/Filler
2.	White mastic	**None Detected**	None Detected	Mastic/Binder
3.	White compacted powdery material with paint	**None Detected**	None Detected	Binder/Filler

Lab ID: 250946508 **Client ID:** C08

Layer	Layer Description	**Asbestos Type %**	Other Fibrous Material %	Other Non Fibrous Material
1.	Black flat rubbery material	**None Detected**	None Detected	Binder/Filler
2.	White mastic	**None Detected**	None Detected	Mastic/Binder

Lab ID: 250946509 **Client ID:** C09

Layer	Layer Description	**Asbestos Type %**	Other Fibrous Material %	Other Non Fibrous Material
1.	Black flat rubbery material	**None Detected**	None Detected	Binder/Filler
2.	White mastic	**None Detected**	None Detected	Mastic/Binder

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BULK ASBESTOS FIBER ANALYSIS

BY POLARIZED LIGHT MICROSCOPY

NVLAP TESTING
NVLAP LAB CODE 500079-0
Phone:(562) 860-2201
www.aihlab.com

Client Name: Charles Taylor Environmental Technical Services
Project Manager: Kyle Gamez
Client Address: 301 Merritt 7, 2nd Floor, Norwalk, CT 06851
Project Number: 2128594
Project Location: 18 N Shore Dr, Big Bear City, CA, 92314

Lab Batch Number: 2509465
Samples Submitted: 9
Samples Analyzed: 9
Analysis Method: EPA 600/R-93-116 & EPA 600/M4-82-020

Analyzed by: Lynsey Ninh **Signature:** Lynsey **Date:** 05-01-2025

Reviewed by: Vivian Le **Signature:** Vivian Le **Date:** 05-01-2025

*Total Layers Analyzed:20

Reporting limit is 1%. If the sample was not collected by AIH Laboratory then the accuracy of the results is limited by the methodology and experience of the sample collector. Clients can verify specific reporting limit requirement from local regulatory agencies. Liability limited to cost of samples analysis. This report shall not be reproduced except in full, without written approval of AIH Laboratory. It shall not be used to claim product endorsement by NVLAP or any other agency of the government. Reported results relate only to the samples tested and may not be the representative of the sample area. AIH Laboratory shall dispose of the Customer's samples 14 days after receiving the samples unless instructed to store them for an alternate period of time in writing.

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2509465

Asbestos and/or Lead Paint Chip/XRF Chain of Custody

Sampled and/or Assessed By: Scott Haly
Date: 05-01-25
Project Site Name: Baldwin Lake Ecological Reserve
TAT Requested: 4 hours
Project Site Address: 18 N. Shore Dr. Big Bear City, CA 92314
Job/ Work Order # : 2128594

HM	#	Sample Location	Sample Description/Material	Est. QTY	Cond	Friable (Y/N)	Testing Type	Results
A	01	OFFICE #1	WB / JC	1200#	GOOD	N	PLM	
A	02	OFFICE #2	↓	↓	↓	↓	↓	
A	03	Storage Area	↓	↓	↓	↓	↓	
B	04	Storage Area Back Entry	12x12 TAN F.T/MASTIC	30#	GOOD	N	↓	
B	05	Front Entry	↓	↓	↓	↓	↓	
B	06	↓ ↓ ↓	↓	↓	↓	↓	↓	
C	07	Lobby	4" Black Cove Base w/MASTIC	600#	GOOD	N	↓	
C	08	OFFICE #2	↓	↓	↓	↓	↓	
C	09	Storage Area	↓	↓	↓	↓	↓	
	1	Exterior Main Bldg	Brown WOOD WALL	F	—	<0.1	XRF	NEG
	2	Exterior Rest Room	Brown-Concrete-WALL	I	—	↓	↓	↓
	3	Mens Rest Room	white-concrete-WALL	I	—	↓	↓	↓
	4	Womens Rest Room	white-Concrete-WALL	I	—	↓	↓	↓

Samples Handed Off to Front Desk ☒ Samples Dropped in Secure & Locked Dropbox ☐

Relinquished By: [signature] Date/Time: 05-01-25 / 9:00AM
Received By: [signature] Date/Time: 12:30pm/AM
Relinquished By: Date/Time:
Received By: Chase Hashimoto Date/Time: 05/01/25 12:30PM

Positive Stop Requested

Email Results to:
CTEnviroResults@charlestaylor.com

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l Services

2509465

Asbestos and/or Lead Paint Chip/XRF Chain of Custody

Sampled and/or Assessed By: Scott Haley
Date: 05.01.25
Project Site Name: Baldwin Lake Ecological Reserve
TAT Requested: 4 hours
Project Site Address: 18 N. Shore Dr. Big Bear City, CA
Job/ Work Order # : 2178594

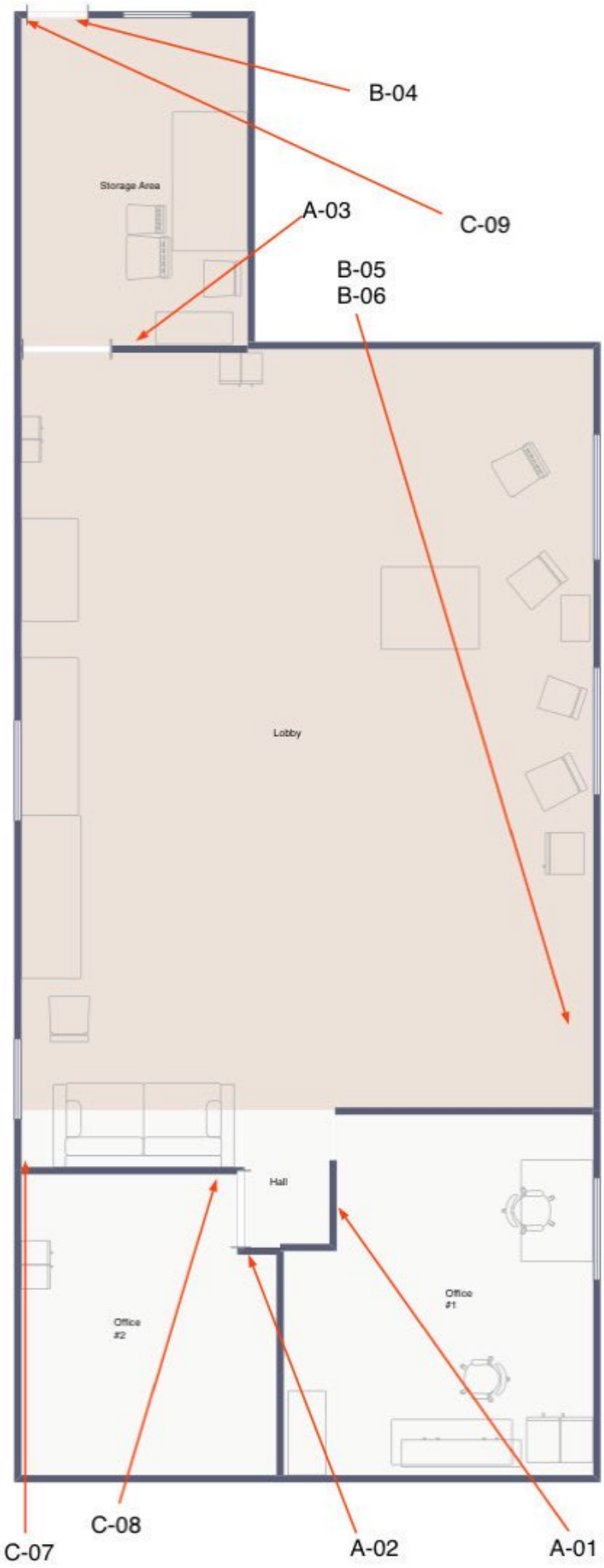
HM	#	Sample Location	Sample Description/Material	Est. QTY	Cond	Friable (Y/N)	Testing Type	Results
	5	Exterior Main Bldg	Brown - wood - Over Hang	I	–	<0.1	XRF	NEG
	6	OFFICE #1	white - WB - wall	I	–			
	7	OFFICE #2	white - WB - wall	I	–			
	8	Lobby	white - WB - wall	I	–			
	9	Lobby	white - wood - wall	I	–			
	10	Lobby	white - wood - Posts	I	–			
	11	Lobby	white - wood - BEAMS	I	–			
	12	Storage Area	white - WB - wall	I	–			

Samples Handed Off to Front Desk ☒ Samples Dropped in Secure & Locked Dropbox ☐

Relinquished By: [signature] Date/Time: 05.01.25 / 9:00AM
Received By: [signature] Date/Time: 1223 pm/AM
Relinquished By: Date/Time:
Received By: Chase Hashimoto Date/Time: 05/01/25 12:30PM

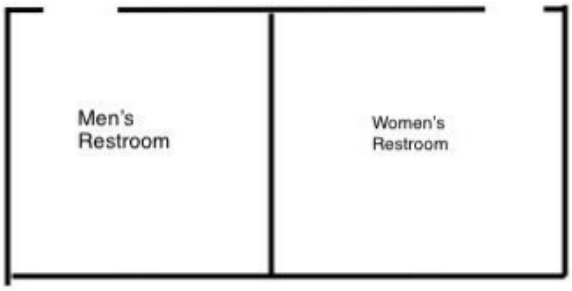
Positive Stop Requested

Email Results to:
CTEnviroResults@charlestaylor.com

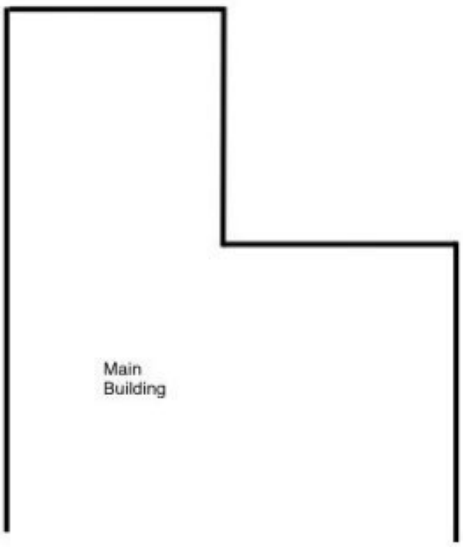


Scanned with CamScanner

21235641 Baldwin Lake Ecological Reserve
18 N. Shore Dr, Big Bear City, CA



No suspects material



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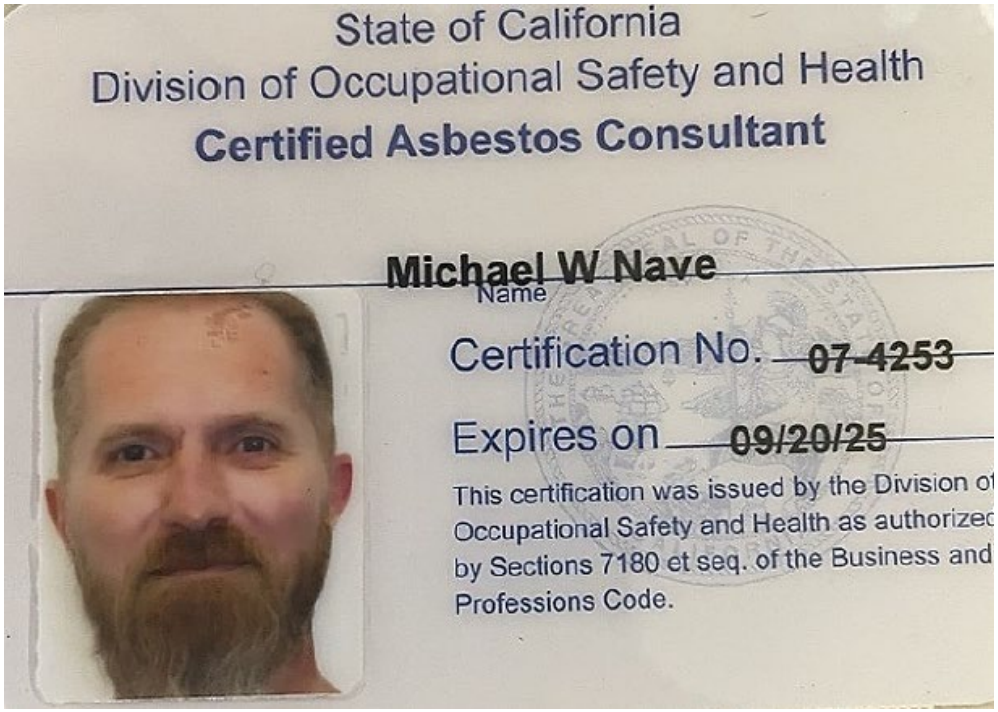
Charles Taylor Environmental Technical Services



State of California
Division of Occupational Safety and Health
Certified Asbestos Consultant

Michael W Nave
Name

Certification No. 07-4253

Expires on 09/20/25

This certification was issued by the Division of Occupational Safety and Health as authorized by Sections 7180 et seq. of the Business and Professions Code.

EXHIBIT B – BUDGET DETAIL AND PAYMENT PROVISIONS

1. Invoicing and Payment:

   A. For construction services satisfactorily rendered, and upon receipt and approval of the invoices, the State agrees to compensate the Contractor for actual expenditures incurred in accordance with the rates specified herein, which is attached hereto and made a part of this Agreement.

   B. The Contractor agrees to accept payment only in the form of a warrant issued by the California State Controller's Office (SCO). No other payment method shall be made in the payment of these invoices.

   C. Contractor shall submit an original, and one (1) copy of the invoice, which properly details all charges, expenses, direct and indirect costs. Invoices shall be submitted by mail or email to:

Invoices will be sent to:	
Contract Coordinator:	**Noretta Govoni, AGPA**
Region / Division:	**R6/Lands South**
Address:	**3602 Inland Empire Blvd., Ste. C-220, Ontario, CA 91764**
Email:	**noretta.govoni@wildlife.ca.gov**

   D. The original and one (1) approved copy of the invoice will be forwarded to the Department of Fish and Wildlife's Accounting Claims Section by the Contract Coordinator. Payment of any invoice will be made only after receipt of a complete, adequately supported, properly documented and accurately addressed invoice. Failure to use the address exactly as provided above, may result in the return of the invoice to the Contractor. All invoices must be approved by the Contract Manager.

   E. Prices paid for the various items of the contract shall include full compensation for furnishing all material, labor, tools, and equipment, and doing all work involved in accomplishing the fulfillment of the plans and specifications herein specified. Items necessary for the completion of the work for which no separate prices are herein included shall be considered included in the various items of the contract.

   F. Progress payments will not be made by the State.

   G. Lump sum prices paid for the various items of the contract shall include full compensation for furnishing all material, labor, tools, and equipment, and doing all work involved in accomplishing the fulfillment of the plans and specifications as herein specified.

   H. The quantities of items shown on the contract form are determined by computations based on the details and dimensions shown on the plans, and no guarantee is made that the actual quantities, as constructed, will be the quantities shown on the contract form.

      If no changes are made to the work which affects the quantity of an item paid for on a per unit price basis, no allowance will be made in the event the quantity, as constructed, does not equal the quantity shown on the contract form.

SAMPLE

I. The provisions of Section 9-1.16C, Materials on hand, of DOT Standard Specifications which pertain to the value of materials delivered to the job site and stored for use, shall not apply. Payment for material delivered to the job site shall be made only for that portion of such material complete in place, as specified, at the time the estimate for progress payment is made. No payment shall be paid for materials delivered and stored. Mobilization, if there be such an item, will be paid in accordance with Section 9-1.16D, of the DOT Standard Specifications except that the retention of funds provision of Item D above shall apply to the contract lump sum item of mobilization.

J. The invoice shall contain the following information:

1. The word “Invoice” should appear in a prominent location at the top of the page(s),
2. Printed name of the Contractor,
3. Business address of the Contractor including P.O. Box, City, State, and Zip Code,
4. Name of the Region/Division of the Department of Fish and Wildlife being billed,
5. The date of the invoice, invoice number, and the time period covered,
6. The number of the agreement upon which the claim is based, and
7. An itemized account of the services for which the Department of Fish and Wildlife is being billed. Include all of the following:
   a. The time period covered by the invoice, i.e., the term “from” and “to”,
   b. A description of the services performed based on Items identified in Item 4. Budget Detail, and
   c. The total amount due: This should be in a prominent location in the lower right-hand portion of the last page and clearly distinguished from other figures or computations appearing on the invoice; the total amount due shall include all costs incurred by the Contractor including retention under the terms of this agreement.

2. Contract Written Prior To Approval of The Budget Act

A. It is mutually understood between the parties that this Agreement may have been written prior to approval of the Budget Act for the mutual benefit of both parties in order to avoid program and fiscal delays.

B. This Agreement is valid and enforceable only if sufficient funds are made available by the Budget Act for the Fiscal Year(s) involved for the purposes of this program. In addition, this Agreement is subject to any additional restrictions, limitations, or conditions enacted by the Legislature and contained in the Budget Bill or any statute enacted by the Legislature which may affect the provisions, terms, or funding of this Agreement in any manner.

SAMPLE

C. It is mutually agreed that if the Budget Act of the current year and/or any subsequent years covered under this Agreement does not appropriate sufficient funds for the program, this Agreement shall be of no further force and effect. In this event, the State shall have no liability to pay any funds whatsoever to the Contractor or to furnish any other considerations under this Agreement and the Contractor shall not be obligated to perform any additional provisions of this Agreement.

D. If funding for any fiscal year is reduced or deleted by the Budget Act for purposes of this program, the State shall have the option to either cancel this Agreement with no liability occurring to the State or offer an agreement amendment to the Contractor to reflect the reduced amount.

3. Prompt Payment Clause

Payment will be made within forty-five (45) calendar days of receipt of an undisputed invoice by Department of Fish and Wildlife Contract Manager as stated in Government Code, Chapter 4.5, commencing with Section 927.

4. Budget Detail

The Contractor will be reimbursed for actual services rendered as requested and approved by the CDFW Contract Manager. The Contractor will submit to the CDFW Contract Manager progress reports every twenty (20) working days of the percent of each unit that has been completed since the last invoice was received. The CDFW Contract Manager will verify the completed work before approving the invoice. The Contractor will be reimbursed at the costs identified below and charges must not exceed **Written Dollars and Cents Amount ($XXX,XXX.XX)** which is the maximum amount of the agreement.

Item Number	Approximate Quantity	Item(s) of Work Description	Unit Price	Item Total
1.	1 Job	Replacement of all siding on exterior of office	Lump Sum	$
2.	1 Job	Replacement of 30% of the office sheathing	Lump Sum	$
3.	1 Job	Exterior painting of fascia/rake, exposed rafters, soffit, doors and door frames	Lump Sum	$
4.	1 Job	Contingencies (See Below) **as determined by the Contract Manager**	Lump Sum	$ N/A
			TOTAL: Sum of Item 1, 2, 3 and 4	$

SAMPLE

A. Contingencies

Contingencies are for changes due to unforeseen items of work, and/or adjustments in the quantities of items bid on a unit price basis, as may be determined and allowed by the Contract Manager. The total amount to be paid under this item may be from zero (if no changes are allowed) to the full amount, as determined by the Contract Manager.

SAMPLE

FEDERAL PROVISIONS

1. **UTILIZATION OF SMALL, MINORITY, AND WOMEN'S BUINESSES:** The Contractor agrees that affirmative steps will be taken to assure that qualified small, minority and women-owned businesses are used when possible as sources of supplies, construction, and services in the performance of grant-assisted Agreements and subcontracts. Affirmative steps taken shall include the following:

    a. Include qualified small, minority and women-owned businesses on solicitation lists
    b. Assuring that small, minority and women-owned businesses are solicited whenever they are potential sources
    c. Dividing total requirements, when economically feasible, into smaller tasks or quantities to permit maximum participation of small, minority, and women-owned businesses
    d. Establishing delivery schedules, where the requirements of the work permit, which will encourage participation by small, minority and women-owned businesses
    e. Using the services and assistance of the Small Business Administration, the Minority business Development Agency of the U.S. Department of Commerce, and the State Office of Small Business and Disabled Veteran Business Enterprise Certification
    f. If the Grantee awards subcontracts, requiring the subcontractor to take the affirmative steps in paragraphs A through E of this section.

2. **DISCLOSURE REQUIREMENTS:** Any document or written report prepared in whole or in part pursuant to this Agreement shall contain a disclosure statement indicating that the document or written report was prepared through Agreement with the State. The disclosure statement shall include the Agreement number and dollar amount of all Agreements and subcontracts relating to the preparation of such documents or written reports. The disclosure statement shall be contained in a separate section of the document or written report.

3. **COMPLIANCE WITH FEDERAL REGULATIONS:** The Contractor understands that the State is obligated, in accordance with its assistance Agreement with the Federal Government, to comply with the provisions of federal regulations contained in the Uniform Guidance 2 Code of Federal Regulations (CFR) 200 and any conditions in the grant Agreement and any amendments thereto. In order to ensure that the State can meet these obligations, the Contractor warrants, represents, and agrees that it and its subcontractors, employees, and representatives will comply with: 1) all applicable provisions of 2 CFR 200; and 2) all general and special conditions contained in the Agreement.

4. **COPYRIGHTS:** The Contractor agrees to and does hereby grant to the Federal Government, a royalty-free nonexclusive and irrevocable license to reproduce, publish, or otherwise use, and to authorize others to use, for Federal Government purposes:

    a. The copyright in any work developed under this Agreement; and
    b. Any rights of copyright which the Contractor purchases, in whole or in part, with funds provided by this Agreement.

5. **STANDARDS FOR FINANCIAL MANAGEMENT SYSTEM:** The Contractor and all subcontractors will maintain fiscal control and accounting procedures which are sufficient to:

    a. Permit preparation of reports required by 2 CFR 200 and statutes authorizing the grant.
    b. Permit tracing of funds to a level of expenditures adequate to establish that such funds have not been used in violation of the restrictions and prohibitions of applicable statutes.

    A requirement to this effect shall be placed in all subcontracts related to performance of work under this Agreement.

6. **APPLICABLE COST PRINCIPLES:** The cost principles for this Agreement are applicable as set forth below by the Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards (2 CFR Part 200) and the Contract Costs Principles and Procedures (48 CFR Part 31):

    a. 2 CFR Part 200 Subparts E and F – Cost Principles and Audit Requirements;
    b. 48 CFR Part 31 Subpart 31.7 – Contracts with Nonprofit Organizations

    Funds provided under this Agreement shall not be used for payment of salaries to individual consultants retained by the Contractor or any subcontractors in excess of the rate for Level 4, of the Federal Executive Schedule. The limit expressed herein does not include transportation and subsistence costs for necessary travel for work required under this Agreement.

7. **CONTINGENT FUNDING:** It is mutually understood between the parties that this Agreement may have been written before ascertaining the availability of congressional appropriation of funds for the mutual benefit of both parties in order to avoid program and fiscal delays which would occur if the Agreement were executed after that determination was made.

    This Agreement is valid and enforceable only if sufficient funds are made available to the State by the US Government for the fiscal year(s) covered by this Agreement for the purposes of this program. In addition, this Agreement is subject to any additional restrictions, limitations, or conditions enacted by the Congress of any statute enacted by the Congress which may affect the provisions, terms, or funding of this Agreement in any manner.

    It is mutually agreed that if the Congress does not appropriate sufficient funds for the Agreement, the State has the option to terminate the Agreement under the termination clause or to amend the Agreement to reflect any reduction of funds.

    The California Department of Fish and Wildlife (CDFW) has the option to invalidate the Agreement under the 30-day cancellation clause or to amend the Agreement to reflect any reduction in funds.

8. **ENVIRONMENTAL QUALITY:** The Contractor and subcontractors shall comply with all applicable standards, orders, or requirements issued under Section 306 of the Clean Air Act, Title 42 U.S.C. 1857(h), Section 508 of the Clean Air Act, Title 33 U.S.C. 1368 Executive Order 11738 and, Title 40 CFR part 15

   The Contractor shall comply with mandatory standards and policies related to energy efficiency which are contained in the State Energy Conservation Plan issued in compliance with the Conservation Act (Publ. L. 94-163).

9. **RECYCLED PAPER:** The Contractor agrees to use recycled paper for all reports which are prepared as a part of this Agreement and delivered to the State. This requirement does not apply to reports which are prepared on form supplied by the Federal Government. This requirement applies even when the cost of recycled paper is higher than that of virgin paper.

10. **SINGLE AUDIT ACT:** To the extent applicable, the Contractor shall be subject to and shall comply with the provisions and requirements of the Single Audit Act of 1984 (Pub. L 98-502) and implementing policies, procedures and guidelines, including applicable circulars issued by the Federal OMB.

11. **FEDERAL ASSURANCES:** It is further agreed that by signing this Agreement, the Contractor is subject to Title VI of the Civil Rights Act of 1964, Section 504 of the Rehabilitation Act of 1973, Title II of the Americans with Disabilities Act of 1990, the Age Discrimination Act of 1975, Title IX of the Education Amendments of 1972, and offers all persons the opportunity to participate in programs or activities regardless of race, color, national origin, age, sex, or disability. Further, it is agreed that no individual will be turned away from or otherwise denied access to or benefit from any program or activity that is directly associated with a program of CDFW on the basis of race, color, national origin, age, sex (in education activities) or disability.

12. **COMPLIANCE WITH FEDERAL FUNDING ACCOUNTABILITY AND TRANSPARENCY ACT 2006 (FFATA):** As a recipient of a federal contract, grant or other federal funds, the State is required under the Federal Funding Accountability and Transparency Act of 2006 (FFATA) to report certain information about the State's contractors, grantees and sub-recipients of that federal funding. The Contractor, as a sub-recipient of federal funds, agrees to provide the State with data required under the FFATA unless exempted under that act. Contractor shall complete the FFATA Certification form (DFW 868) and submit it as instructed, on or before execution of the agreement. If not exempt, the Contractor will create a registration, or update its data if already registered, on the federal System for Award Management (SAM) at www.sam.gov. A Data Universal Numbering System (DUNS) number is required for the SAM registration and must be included on the FFATA Certification form unless exempted per the certification. Contractor agrees to update its SAM registration and notify the State if there is a material change to its SAM data, or its exemption status changes.

13. **TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT:**

    Recipients of a federal contract, grant or other federal funds are prohibited to procure/obtain, and extend, re-new and/or enter into a new contract to procure equipment, services or systems that uses *covered telecommunications* equipment or services as a

substantial or essential component of any system or as critical technology as part of any system. *Covered telecommunications* equipment is equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary of affiliate of such entities). For the purpose of public safety, security of government facilities, physical surveillance of critical infrastructure and other nation security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahura Technology Company (or any subsidiary or affiliate of such entities) is prohibited. 2 CFR 200.216

14. <u>BUILD AMERICA, BUY AMERICA ACT:</u>

The Build America, Buy America (BABA) Act, enacted as part of the Bipartisan Infrastructure Law (BIL) on November 15, 2021, requires that all federally funded infrastructure projects awarded after May 14, 2022, use domestic sources of iron, steel, manufactured products, and construction materials produced in the United States. Infrastructure consists of public infrastructure projects and includes, at a minimum, the structures, facilities, and equipment for roads, highways, and bridges; public transportation; dams, ports, harbors, and other maritime facilities; intercity passenger and freight railroads; freight and intermodal facilities; airports; water systems, including drinking water and wastewater systems; electrical transmission facilities and systems; utilities; broadband infrastructure; buildings and real property. Infrastructure also consists of structures, facilities, and equipment that generate, transport, and distribute energy, including electric vehicle (EV) charging.

Pursuant to Section 70914(c) of the BABA Act, CDFW may waive the Buy America preference where CDFW finds that:

a. Applying the domestic content procurement preference would be inconsistent with the public interest (a “public interest waiver”);
b. Types of iron, steel, manufactured products, or construction materials are not produced in the United States in sufficient and reasonably available quantities or of a satisfactory quality (a “nonavailability waiver”); or
c. Inclusion of iron, steel, manufactured products, or construction materials produced in the United States will increase the cost of the overall project by more than 25 percent (an “unreasonable cost waiver”).

Absent a waiver, all iron, steel, manufactured products, and construction materials permanently incorporated into an infrastructure project subject to the BABA requirements must be produced in the United States, with the exception of select construction materials (cement and cementitious materials; aggregates such as stone, sand, or gravel; or aggregate binding agents or additives), which are specifically excepted by the BABA statute.

1. **EXCISE TAX ~** The State of California is exempt from federal excise taxes, and no payment will be made for any taxes levied on employees' wages. The State will pay for any applicable State of California or local sales or use taxes on the services rendered or equipment or parts supplied pursuant to this Agreement. California may pay any applicable sales and use tax imposed by another state.

2. **AVAILABILITY OF FUNDS ~** Work to be performed under this agreement is subject to availability of funds through the State's normal budget process.

3. **LICENSES AND PERMITS ~** The Contractor must be an individual or firm licensed to do business in California and must obtain, at Contractor's expense, all licenses and permits required by law for accomplishing any work required in connection with this Agreement.

   If Contractor is located within the State of California, a business license from the City/County in which Contractor is headquartered is necessary; however, if Contractor is a corporation, a copy of the Contractor's incorporation documents/letters from the Secretary of State's Office can be submitted. If Contractor is outside the State of California, Contractor must submit to the California Department of Fish and Wildlife (CDFW) a copy of their business license or incorporation papers for Contractor's respective State showing that Contractor's company is in good standing in that State.

   In the event any licenses and/or permits expire at any time during the term of this Agreement, Contractor agrees to provide the CDFW a copy of the renewed licenses and/or permits within thirty (30) days following the expiration date. In the event the Contractor fails to keep in effect, at all times, all required licenses and permits, the State may, in addition to any other remedies it may have, terminate this Agreement upon occurrence of such event.

4. **RIGHTS IN DATA ~** The Contractor agrees that all data, plans, drawings, specifications, reports, computer programs, operating manuals, notes and other written or graphic work produced in the performance of this Agreement, are subject to the rights of the State as set forth in this section. The State will have the right to reproduce, publish, and use all such work, or any part thereof, in any manner and for any purposes whatsoever and to authorize others to do so. If any such work is copyrightable, the Contractor may copyright the same, except that, as to any work which is copyrighted by the Contractor, the State reserves a royalty-free, nonexclusive and irrevocable license to reproduce, publish, and use such work, or any part thereof, and to authorize others to do so.

5. **SETTLEMENT OF DISPUTES ~** Unless otherwise provided in this Agreement, any dispute concerning a question of fact arising under this Agreement which cannot be resolved informally, will be decided by the following two (2) step procedure:

   A. The Contractor must provide written notice of the particulars of such disputes to the CDFW Contract Manager or appointed representative. The CDFW Contract Manager must respond, in writing, within ten (10) working days of receipt of the written notice of dispute. Should the Contractor disagree with the CDFW Contract Manager's decision, the Contractor may appeal to the second level. Pending the decision on appeal the Contractor must proceed diligently with the performance of this Agreement in accordance with the CDFW Contract Manager's decision.

   B. The second level appeal must indicate why the CDFW Contract Manager's decision is unacceptable, attaching it to the Contractor's original statement of the dispute with

supporting documents, and a copy of the CDFW Contract Manager's response. This letter of appeal must be sent to the CDFW, Deputy Director, or duly appointed representative. The second level appeal must be filed within fifteen (15) working days upon receipt of the CDFW Contract Manager's decision. Failure to submit an appeal within the period specified will constitute a waiver of all such rights to an adjustment of this Agreement. The Deputy Director, or designee, will meet with the Contractor to review the issues raised. A written decision signed by the Deputy Director or designee, will be returned to the Contractor within fifteen (15) working days of the receipt of the appeal. The decision of the Deputy Director, or designee, will be final.

6. **CONFIDENTIALITY OF DATA ~** All financial, personal, technical, and other data and information relating to the CDFW operations which are designated confidential by the CDFW, and made available to the Contractor in order to carry out this Agreement, or which becomes available to the Contractor in carrying out this Agreement will be protected by the Contractor for the protection of the Contractor's data and information are deemed by the CDFW's confidential information, such methods and procedures may be used, with written consent of the CDFW, to carry out the intent of this paragraph. The Contractor will not be required under the provisions of this paragraph, to keep confidential any data or information which is or becomes publicly available, is already rightfully in the Contractor's possession, is independently developed by the Contractor outside the scope of this Agreement or is rightfully obtained from third parties.

7. **RIGHT TO TERMINATE ~** The State reserves the right to terminate this agreement subject to thirty (30) days written notice to the Contractor. Contractor may submit a written request to terminate this agreement only if the State should substantially fail to perform its responsibilities as provided herein.

   However, the agreement can be immediately terminated for cause. The term "for cause" will mean that the Contractor fails to meet the terms, conditions, and/or responsibilities of the contract. In this instance, the contract termination will be effective as of the date indicated on the State's notification to the Contractor.

   This agreement may be suspended or cancelled without notice, at the option of the Contractor, if the Contractor or State's premises or equipment are destroyed by fire or other catastrophe, or so substantially damaged that it is impractical to continue service, or in the event the Contractor is unable to render service as a result of any action by any governmental authority.

8. **DISCLOSURE REQUIREMENTS ~** Any document or written report prepared in whole or in part pursuant to this Agreement must contain a disclosure statement indicating that the document or written report was prepared through an Agreement with the State. The disclosure statement must include the Agreement number and dollar amount of all Agreements and subcontracts relating to the preparation of such documents or written reports. The disclosure statement must be contained in a separate section of the document or written report.

   If the Contractor or subcontractor(s) are required to prepare multiple documents or written reports, the disclosure statement may also contain a statement indicating that the total Agreement amount represents compensation for multiple documents or written reports. The Contractor must include in each of its subcontracts for work under this Agreement, a provision which incorporates the requirements stated within this section.

9. **USE OF SUBCONTRACTOR(S) ~** The Contractor must adhere to the rules governing subcontracting as set forth in the Subletting and Subcontracting Fair Practices Act, commencing with Public Contract Code, Section 4100. Subcontractor substitutions must be in accordance with provisions of the Subletting and Subcontracting Fair Practices Act, beginning with Public Contract Code, Section 4100. Violations of this Act by the Contractor may subject the Contractor to penalties and disciplinary action as provided by the Subletting and Subcontracting Fair Practices Act. If the Contractor desires to accomplish part of the services using one (1) or more subcontractors, the following conditions must be met:

   A. The Contractor must submit any subcontracts to the State for approval prior to starting any of the work.

   B. The Agreement between the primary Contractor and the subcontractor must be in writing.

   C. The subcontract must include specific language which establishes the rights of the auditors of the State to examine the records of the subcontractor relative to the services and materials provided under the Agreement.

   D. The Contractor must pay the Contractor's Subcontractors for work performed no later than ten (10) days after receipt of each progress payment. If there is a good faith dispute over all or any portion of the amount due a Subcontractor on a progress payment, the Contractor may withhold no more than one hundred fifty percent (150%) of the disputed amount. This provision will apply to Sub-subcontractors also. A violation of these requirements invokes the payment and penalty provisions of Public Contract Code, Section 10262 and Section 10262.5.

   E. If a subcontractor contracts a portion of the work to a lower tier subcontractor, the subcontractor may not sublet any portion of the work without the written permission from the State. The lower tier subcontractor must have the proper license with the Contractors State License Board (CSLB) and must be registered with Department of Industrial Relations (DIR).

   F. Upon termination of any subcontract, the State must be notified immediately, in writing.

10. **POTENTIAL SUBCONTRACTOR(S) ~** Nothing contained in this Agreement or otherwise will create any contractual relation between the State and any subcontractor(s) and no subcontract will relieve the primary Contractor of its responsibilities and obligations hereunder. The Contractor agrees to be as fully responsible to the State for the acts and omissions of its subcontractor(s) and of persons directly employed or indirectly employed by any of them as it is for the acts and omissions of persons directly employed by the Contractor. The Contractor's obligation to pay its subcontractor(s) is an independent obligation from the State's obligation to make payments to the primary Contractor. As a result, the State will have no obligation to pay or to enforce the payment of any monies to any subcontractor. The State will not entertain requests to arbitrate disputes among Subcontractors or between the Contractor and Subcontractor(s) concerning responsibility for performing any part of the Work.

11. **TRAVEL AND PER DIEM ~** The Contractor agrees that all travel and per diem paid its employees under this Agreement will be at rates not to exceed those amounts paid to the no represented/excluded State employees. No travel outside the State of California will be reimbursed unless prior written authorization is obtained from the State.

12. INSURANCE ~ When the Contractor submits a signed Agreement to the State, the Contractor must furnish to the State a certificate of insurance stating that there is liability insurance presently in effect for the Contractor for all applicable insurance. Contractor agrees to provide the State a copy of the policy upon request.

A. General Provisions Applying to All Policies

(1) Coverage Term – Coverage needs to be in force for the complete term of the contract. If insurance expires during the term of the contract, a new certificate must be received by the State at least ten (10) days prior to the expiration of this insurance. Any new insurance must still comply with the original terms of the contract.

(2) Policy Cancellation / Termination & Notice of Non-Renewal –Contractor must provide to the State within two business days a copy of any notice of Cancellation/Termination or Non-renewal received by contractor for any of the required insurance policies. In the event Contractor fails to keep in effect the specified insurance coverage, the State may, in addition to any other remedies it may have, terminate this Contract upon the occurrence of such event, subject to the provisions of this Contract.

(3) Deductible – Contractor is responsible for any deductible or self-insured retention contained within their insurance program.

(4) Primary Clause – Any required insurance contained in this contract must be primary, and not excess or contributory, to any other insurance carried by the State.

(5) Insurance Carrier – All insurance companies issuing any of the policies required by these provisions must be licensed to do business in the State of California.

(6) Insurance Carrier Required Rating – All insurance companies must carry a rating acceptable to the Office of Risk and Insurance Management. "A" or better and a financial size category of "VII" or better to the latest edition of the A.M. Best Key Rating Guide. Any other rating classification requires State approval. If the Contractor is self-insured for a portion or all of its insurance, review of financial information including a letter of credit may be required.

(7) Endorsements – Endorsements requested by the State must be physically attached to all requested certificates of insurance and not substituted by referring to such coverage on the certificate of insurance. This endorsement must be supplied under form acceptable to the Office of Risk and Insurance Management. **The policy(-ies) must provide additional insurance language as follows: The State of California, its officers, agents, and employees as additional insured, but only with respect to work performed under the agreement.**

In the case of Contractor's utilization of subcontractors to complete the contracted scope of work, contractor must include all subcontractors as insured under Contractor's insurance or supply evidence of insurance to The State equal to

policies, coverages and limits required of Contractor.

(8) Inadequate Insurance – Inadequate or lack of insurance does not negate the contractor's obligations under the contract.

B. Insurance Requirements

(1) Commercial General Liability – Contractor must maintain general liability on an occurrence form with limits not less than $1,000,000 per occurrence for bodily injury and property damage liability combined with a $2,000,000 annual policy aggregate. The policy must include coverage for liabilities arising out of premises, operations, independent contractors, products, completed operations, personal & advertising injury, and liability assumed under an insured contract. This insurance must apply separately to each insured against whom claim is made or suit is brought subject to the Contractor's limit of liability.

The policy must be endorsed.

(2) Automobile Liability – Contractor must maintain motor vehicle liability with limits not less than $1,000,000 combined single limit per accident. Such insurance must cover liability arising out of a **motor vehicle including owned, hired and non-owned motor vehicles.**

The policy must be endorsed.

(3) Workers Compensation and Employers Liability – Contractor must maintain statutory worker's compensation and employer's liability coverage for all its employees who will be engaged in the performance of the Contract. Employer's liability limits of $1,000,000 are required. **When work is performed on State owned or controlled property the Workers' Compensation policy must be endorsed with a Waiver of Subrogation or Right to Recover endorsement in favor of the State of California, Department of Fish and Wildlife must be attached to certificate. Waiver of Subrogation is waved for Emergency Contracts.**

(4) Builder's Risk/Installation Floater – During the term of this contract, Contractor must maintain in force, at its own expense, Builder's Risk/Installation Floater for an amount equal to the full amount of the Contract improvements, upon the project and all materials or items which become the property of State pursuant to the Contract Documents, including, but not limited to, materials and other items at the work site or stored off-site with consent of State. A copy of any applicable Builder's Risk/Installation Floater will be provided to State, and it will be the responsibility of Contractor and each Subcontractor to satisfy itself as to the terms of such coverage, and to determine whether at its own cost, to carry any supplemental policy of insurance. If Applicable.

(5) Pollution Liability – Contractor must maintain Pollution Liability covering the contractor's liability for bodily injury, property damage and environmental damage resulting from pollution and related cleanup cost incurred, all arising out of the work or services to be performed under this contract. Coverage must be provided for both work performed on site and during the transportation as well

as proper disposal of hazardous materials. Contractor must maintain pollution liability with limits no less than $1,000,000 per incident. If Applicable.

The policy's bond terms conform to Form MCS-90 or MCS-82, respectively, as defined and set forth in Sections 387.7 to 387.15, inclusive, of Title 49 of the Code of Federal Regulations, or a written decision, order or authorization to self-insure that complies with paragraph (3) of subsection (d) of Section 387.7 of Title 49 of the Code of Federal Regulations, adopted pursuant to Section 30 of Motor Carrier Act of 1980 (49 U.S.C. Sec 10927). If Applicable.

The policy must be endorsed.

(6) Aircraft Liability – Contractor must maintain motor vehicle liability with limits not less than $1,000,000 combined single limit per accident. Such insurance must cover liability arising out of an aircraft including owned, hired and non- owned aircraft. If Applicable.

The policy must be endorsed.

(7) Watercraft Liability – Contractor must maintain motor vehicle liability with limits not less than $1,000,000 combined single limit per accident. Such insurance must cover liability arising out of a watercraft including owned, hired and non-owned watercraft. If Applicable

The policy must be endorsed.

13. CONTRACT BONDS

A. When the Contract Sum exceeds Twenty-Five Thousand Dollars ($25,000), Contractor must furnish, in duplicate, a Payment Bond, to accompany the Contract, in an amount equal to one hundred percent (100%) of the Contract Sum securing payment for laborers, mechanics, and materials suppliers used on the Work under the Contract. Payment Bonds must be prepared on a Payment Bond to Accompany Construction Contract (STD 807) as furnished by State. (PCC § 7103)

B. Performance Bond will be required if contract exceeds $10,000 and progress payments will be made. Contractor must furnish, in duplicate, a Performance Bond, to accompany the Contract, in an amount equal to one hundred percent (100%) of the Contract Sum guaranteeing faithful performance of the Work. Performance Bonds must be prepared on Performance Bond (FG-188) as furnished by the State. Performance bond may be waived by the department for emergency contracts.

C. Bonds must be issued by a corporate surety authorized to transact a general surety business in the State of California. Contractor must deliver its required bonds before the date of execution of the Contract.

14. TESTING ~ Testing, inspection, and approval of portions of the Work required by Exhibit T-Special Provisions must be made by an independent Testing Laboratory arranged and paid for by the Contractor and approved by the State. Contractor must promptly furnish two certified copies of test results and inspection records to the State Representative. Material and

equipment will not be incorporated into the project until test results indicate conformance to the Contract Documents.

15. **INSPECTION ~** The State, through any authorized representatives, has the right at all reasonable times to inspect or otherwise evaluate the work performed or being performed hereunder including subcontract supported activities and the premises in which it is being performed. If any inspection or evaluation is made by the State of the premises of the Contractor or a subcontractor, the Contractor must provide and must require their subcontractor(s) to provide all reasonable facilities and assistance for the safety and convenience of the State representatives in the performance of their duties. All inspections and evaluations will be performed in such a manner as will not unduly delay the work.

    When the Work is completed, Contractor must notify State's Representative and must request final inspection. Within five (5) Working Days, State's Representative will make final inspection. Contractor will be notified in writing of any deficiencies (Punch List). Contractor must remedy these deficiencies to complete satisfaction of State.

16. **FORCE MAJEURE ~** Neither party will be liable to the other for any delay in or failure of performance, nor will any such delay in or failure of performance constitute default, if such delay or failure is caused by 'Force Majeure'. As used in this section, 'Force Majeure' is defined as follows: Acts of war, acts of God such as earthquakes, floods, and other natural disasters such that performance is impossible.

17. **FORCED, CONVICT AND INDENTURED LABOR ~** No foreign-made equipment, materials, or supplies furnished to the State pursuant to this Agreement may be produced in whole or in part by forced labor, convict labor, or indentured labor. By submitting a bid to the State or accepting a purchase order, the Contractor agrees to comply with this provision of the Agreement. This requirement does not apply to public works (construction) Agreements.

18. **CONTRACT STAFF REQUIREMENTS ~** The Contractor represents that it has or will secure at its own expense, all staff required to perform the services described in this Agreement. Such personnel will not be employees of or have any contractual relationship with the CDFW or any other governmental entity.

19. **DEFINITIONS**

    - The Contract consists of the agreement, the general conditions of the contract, the special conditions, the drawings, and specifications, including all modifications thereof incorporated in documents before their execution.

    - Wherever in the contract the word Department is used it will be understood as referring to the CDFW.

    - Wherever in the contract the word Engineer is used it will be understood as referring to the Chief Engineer of the CDFW, acting personally or through an assistant duly authorized in writing for such act by the Engineer.

    - Written notice must be deemed to have been duly served if delivered in person to the individual or to a member of the firm or to an officer of the corporation for whom it is intended or if delivered at or sent by registered mail to the last business address known.

- The term Subcontractor, as employed herein, includes only those having a direct contract with the Contractor and it includes one who furnishes material worked to a special design according to the plans or specifications of this work but does not include one who merely furnishes material not so worked.

- The term "work" of the Contractor or Subcontractor includes labor or materials or both, equipment, transportation, or other facilities necessary to complete the contract.

20. **CORRELATION AND INTENT OF CONTRACT ~** All parts of the contract are complementary, and what is called for by none will be as binding as if called for by all. The intention of the contract is to include all labor and materials, equipment and transportation necessary for the proper execution of the work. It is not intended, however, that materials or work not covered by or properly inferable from any heading, branch, class, or trade of the specifications must be supplied unless distinctly so noted on the drawings. Materials or work described in words which so applied have a well-known technical or trade meaning will be held to refer to such recognized standards. In case of conflict, Special Provisions will govern over the Contract Drawings. The Contract Drawings will govern over Standard Specifications. Any conflict the Contractor becomes aware of during the conduct of the work must be brought to the attention of the Contract Manager. All work shown on the drawings, the dimensions of which are not figured, must be accurately followed to the scale to which the drawings are made; however, figured dimensions are in all cases to be followed, though they differ from scaled measurements. Any work for which there are no provisions in the specifications or on the drawings must be performed in accordance with the provisions of the State Specifications.

21. **DETAIL DRAWINGS AND INSTRUCTIONS ~** The Contract Manager or Engineer must furnish with reasonable promptness, additional instructions, by means of drawings or otherwise, necessary for the proper execution of the work. All such drawings and instructions must be consistent with the contract, true developments thereof, and reasonably inferable therefrom.

22. **OWNERSHIP OF DRAWINGS ~** All drawings, specifications and copies thereof furnished by the Contract Manager or Engineer are the property of the State. They are not to be used on other work, and, with the exception of the signed contract set, are to be returned on request, at the completion of the work. All models are the property of the State.

23. **ROYALTIES AND PAYMENTS ~** The Contractor must pay all royalties and license fees. Contractor must defend all suits or claims for infringement of any patent rights and will save the State harmless from loss on account thereof.

24. **TRADE NAMES ~** Any trade names or manufacturer's names shown herein are, unless otherwise specified, intended as a guide of quality and specifications to the fabricator or Contractor. Such names are not intended to limit the material or methods to any particular manufacturer or manufacturers, if equal or better quality and specifications are furnished. Unless otherwise specified herein, the Contractor will have a period of 35 days after award of this contract for submission of data substantiating a request for a substitution of an "equal" item.

25. **SURVEYS, PERMITS, AND REGULATIONS ~** The Contractor is responsible for all surveys and measurements necessary to complete the work, unless otherwise specified. Permits and licenses of a temporary nature necessary for the prosecution of the work must be secured and paid for by the Contractor. The Contractor must give all notices and comply with all laws,

ordinances, rules, and regulations bearing on the conduct of the work as drawn and specified. If the Contractor observes that the drawings and specifications are at variance therewith, Contractor must promptly notify the Contract Manager in writing, and any necessary changes will be adjusted as provided in the contract for changes in the work. If the Contractor performs any work knowing it to be contrary to such laws, ordinances, rules, and regulations, and without such notice to the Contract Manager, Contractor will bear all costs arising therefrom.

26. **PROJECT SIGNS, WARNING SIGNS, BARRICADES, AND EMERGENCY LIGHTING ~ The Contractor will be responsible for furnishing and maintaining all necessary warning signs, barricades, and emergency lighting.**

27. **MATERIALS, APPLICANCES, EMPLOYEES ~** Unless otherwise stipulated, the Contractor must provide and pay for all materials, labor, water, tools, equipment, light, power, transportation, and other facilities necessary for the execution and completion of the work. Unless otherwise specified, all materials must be new and good quality. The Contractor must, if required, furnish satisfactory evidence as to the kind and quality of materials. The Contractor must always enforce strict discipline and good order among Contractor's employees and subcontractors and must not employ unfit personnel or any personnel not skilled in the assigned work.

28. **RECORDS OF MATERIAL PURCHASED ~** If required by the CDFW Contract Manager, the Contractor must furnish duplicate invoices to the CDFW Contract Manager on all material furnished to the job.

29. **MEASUREMENT OF QUANTITY ~** The quantities of work performed will be computed by the Contract Manager based on measurement taken by the Contract Manager or an assistant; these measurements will be final and binding.

    All work completed under contract must be measured by the Contract Manager according to United States Measurements and Weights. Method of measurements is specified in the Special Conditions.

30. **OMISSIONS AND DISCREPANCIES ~** If the Contractor, in the course of the work, finds any discrepancy between the drawings and the physical conditions of the locality, or any errors or omissions in drawings or in the layout as given by points and instructions, it will be the Contractor's duty immediately to inform the Contract Manager, in writing, and the Contract Manager will promptly verify the same. Any work done after such discovery until authorized will be done at the Contractor's risk.

31. **INTERPRETATIONS AND ADDENDA ~** No oral interpretations will be made to any bidder as to the meaning of any of the contract or be effective to modify any part of the provisions of contract. Every request for any interpretation must be made in writing and addressed and forwarded to the CDFW Contract Manager specified in the Contract.

32. **CONTRACTOR'S UNDERSTANDING ~** It is understood and agreed that the Contractor has been, by careful examination, satisfied as to the nature and location of the work, and the conformation of the ground, the character, quality and quantity of the materials to be encountered, the character of equipment and facilities needed preliminary to and during the prosecution of the work, the general and local conditions, and all matters which can in any way affect the work under this contract. No oral agreement or conversation with any officer,

agent, or employee of the State, either before or after the execution of this contract, will affect or modify any of the terms or obligations herein contained.

33. **COMMENCEMENT OF WORK ~** This agreement is of no force and effect until signed by both parties and approved by the CDFW. Any work initiated prior to the approval date is done at the Contractor's own risk. Absolutely no expenses incurred prior to the effective date of this agreement will be approved for payment.

34. **CHANGES IN WORK ~** The State, without invalidating the contract, may order extra work or make changes by altering, adding to, or deducting from the work, the contract Sum being adjusted accordingly. All such work will be executed under the conditions of the original contract except that any claim for extension of time caused thereby will be adjusted at the time of ordering such change. No work will be undertaken on a change order until approval has been obtained. No extra work or change will be made unless ordered by the State, and no claim for an addition to the contract Sum will be valid unless so ordered. The value of any such extra work or change will be determined in one or more of the following ways:

    A. By estimate and acceptance in a lump sum

    B. By unit prices named in the contract or subsequently agreed upon

    C. By cost and percentage or by cost and a fixed fee

    If none of the above methods is agreed upon, the Contractor, provided an order is received as above, will proceed with the work. In such case and also under case (C) a correct account of the net cost of labor and materials, together with vouchers, must be kept and presented in such form as the CDFW Contract Manager may direct. In any case, the CDFW Contract Manager will certify to the amount, including reasonable allowance for overhead and profit, due to the Contractor. Pending final determination of value, payments on account for changes must be made on the CDFW Contract Manager 's estimate.

    When payment is made as listed in case (C) by cost and a percentage, the Contractor will be paid in accordance with Section 9-1.03 of the Standard Specifications.

    All extra work must be reported daily upon report sheets furnished to the CDFW Contract Manager by the Contractor and signed by both parties, which daily reports will thereafter be considered the true record of the force account of work done.

35. **AUTHORITY ~** Only the CDFW Contract Manager or designated representative, can authorize changes, alterations, additions, or deletions to the work. The CDFW Contract Manager shall consult with the Engineer as needed. Such authorization must be in writing, in the form of a change order or an amendment. Changes, alterations, additions, or deletions to the work requested by Department personnel other than the CDFW Contract Manager or designated representative, must be done at the Contractor's expense, unless approved in writing by the CDFW Contract Manager prior to beginning such work. The Contractor must obtain prior written approval of the CDFW Contract Manager to proceed with any work which will cause the total project cost to exceed the total original bid cost. When such work involves quantities of contract unit items, it will be the responsibility of the Contractor to make timely measurements of such unit items in advance, as are necessary, to inform the CDFW Contract Manager.

36. **SEPARATE CONTRACTS ~** The State reserves the right to let other contracts in connection with this work. The Contractor will afford other contractors' reasonable opportunity for the introduction and storage of their materials and the execution of their work and will properly connect and coordinate the other contractors' work with theirs.

    To ensure the proper execution of subsequent work, the Contractor must inspect and measure work already in place and must at once report to the CDFW Contract Manager any discrepancy between the executed work and the drawings.

37. **RIGHTS OF VARIOUS INTERESTS ~** Wherever work being done by the State's forces or by other contractors is contiguous to work covered by this contract, the respective rights of the various interests involved must be established by the CDFW Contract Manager, to secure the completion of the various portions of the work in general harmony.

38. **USE OF COMPLETED PORTIONS ~** The State will have the right to take possession of and use any completed or partially completed portions of the work, notwithstanding that the time for completing the entire work or such portions may not have expired. Taking possession and/or use will not be deemed an acceptance of any work not completed in accordance with the contract.

39. **REMOVAL OF EQUIPMENT ~** In the case of annulment of this contract before completion from any cause whatsoever, the Contractor, if notified by the State, will promptly remove any part or all Contractor's equipment and supplies from the property of the State, failing which, the State will have the right to remove such equipment and supplies at the expense of the Contractor.

40. **AMERICAN WITH DIASABLITIES ACT ~** By signing this contract, the Contractor assures the State that it complies with the Americans with Disabilities Act (ADA) of 1990 (42 USC § 12101 et seq.), which prohibits discrimination based on disability, as well as with all applicable regulations and guidelines issued pursuant to the ADA.

41. **STOP WORK ~** The Contract Manager or designated representative has authority to stop the work whenever such stoppage may be necessary to insure the proper execution of the contract. The Contract Manager or designated representative will also have the authority to reject all work and materials which do not conform to the contract, to direct the applications of forces to any portion of the work, as is required, and to order the force increased or diminished and to decide questions which arise in the execution of the work.

    If at any time before the commencement, or during the progress of the work, tools, plant, or equipment appear to the Contract Manager or designated representative to be insufficient, inefficient, or inappropriate to secure the quality of work required or the proper rate of progress, the Contract Manager or designated representative may order the Contractor to increase their efficiency, to improve their character, to augment their number, or to substitute new tools, plant or equipment as the case may be, and the Contractor must conform to such order; but the failure of the Contract Manager or designated representative to demand such increase of efficiency, number, or improvement will not relieve the Contractor of his or her obligation to secure the quality of work and the rate of progress necessary to complete the work within the time required by this contract to the satisfaction of the State.

42. **CDFW CONTRACT MANAGER'S DECISION ~** The CDFW Contract Manager must, within a reasonable time after their presentation to him or her, make decisions in writing on all claims of the State or the Contractor and on all other matters relating to the execution and progress of the work or the interpretation of the Contract Documents. All such decisions of the CDFW Contract Manager will be final.

43. **RESPONSIBILITY FOR INJURY AND DAMAGE ~** Contractor will be responsible for damage to or loss of property regardless of cause, or for injury or loss of life to persons employed on this Project and to the general public, which arise from operations under this Contract.

    From the formal Start Work Date until formal acceptance of the Work, Contractor is responsible to save from injury and damage by whatever cause all of the Work under this Contract, except as provided in Section 7105 of the Public Contract Code. Contractor must rebuild, restore, and/or repair any such injury or damage, at Contractor's sole expense, before formal acceptance.

    State is hereby relieved at all times from an indebtedness or claim other than the Contract Sum.

44. **SANITARY FACILITIES ~** Contractor must provide potable drinking water, and sanitary toilet facilities for Contractor's worker unless the use of existing facilities is authorized by State's Representative. Contractor must locate temporary facilities as directed by State's Representative and maintain such facilities in good repair and in a sanitary condition. Contractor must remove such facilities completely at the conclusion of the Work.

45. **PRESERVATION OF PROPERTY ~** Due care must be exercised to avoid injury to existing improvements or facilities, utility facilities, adjacent property, and roadside trees and shrubbery that are not removed under this contract.

    Trees and shrubbery that are not removed, the pole lines, fences, signs, survey markers and monuments, buildings and structures, conduits, pipe lines, under or above ground, culverts, sewer and water lines, and any other improvements or facilities within or adjacent to the work must be protected from injury or damage, and if ordered by the CDFW Contract Manager, the Contractor will provide and install suitable safeguards, approved by the CDFW Contract Manager, to protect such objects from injury or damage. If such objects are injured or damaged by reason of the Contractor's operations, they must be replaced or restored, at the Contractor's expense, to a condition as good as when the Contractor entered upon the work, or as good as required by the specifications accompanying the contract.

    The Contractor will examine all bridges, culverts, and other structures, on or near the work, over which materials and equipment will be moved, and before using them will properly strengthen such structures, where necessary. The Contractor will be held responsible for all injury or damage to such structures caused by reason of his or her operations.

    Full compensation for furnishing all labor, materials, tools, and equipment and doing all work involved and protecting property as above specified must be considered as included in the prices paid for the contract work and no additional compensation will be allowed.

46. **PROGRESS OF THE WORK AND TIME OF COMPLETION ~** Unless otherwise provided for, the Contractor will begin work within ten (10) days after the date of the Notice to Proceed and will diligently prosecute the same to completion before the expiration of the number of days

for this contract as set forth in the Special Provisions.

A working day is defined as any day, except as follows:

A. Saturdays, Sundays, and Legal Holidays.

B. Days on which the Contractor is prevented by inclement weather or conditions resulting immediately therefrom, as determined by the CDFW Contract Manager.

It is further agreed that in case the work called for under the contract is not finished and completed in all parts and requirements within the number of days specified, the State will have the right to increase the number of days or not, as may seem best to the interest of the State.

If the work is not completed within the time required, damage will be sustained by the State. It is and will be impracticable and extremely difficult to ascertain and determine actual damage which the State will sustain by reason of such delay; and it is therefore agreed that the Contractor will pay to the State the sum of money stipulated per day in Exhibit G, Item 53: Liquidated Damages for each and every day's delay in finishing the work beyond the time prescribed. If the Contractor fails to pay such liquidated damage, the Department may deduct the amount thereof from any money due or that may become due the Contractor under the contract.

47. DELAYS AND EXTENSION OF TIME ~ If the Contractor be delayed at any time in the progress of the work by an act or neglect of the State or its employees, or by any other Contractor employed by the State, or by changes ordered in the work, or by strikes, lockouts, fire, unusual delay in transportation, unavoidable casualties or any cause beyond the Contractor's control, or by any cause which the CDFW Contract Manager will deem to justify the delay, then the time of completion will be extended for such reasonable time as the CDFW Contract Manager may decide.

48. BASIS OF PAYMENT ~ Payment will be made by the State only on a certificate issued by the CDFW Contract Manager. Certificates will be issued as outlined in Exhibit B; Invoicing and Payment.

49. CLAIMS FOR EXTRA COST ~ If the Contractor claims that any instructions by drawings, or otherwise, involve extra cost under this contract, Contractor must give the CDFW Contract Manager written notice thereof within a reasonable time after the receipt of such instructions, and in any event before proceeding to execute the work, and the procedure must then be as provided for changes in the work. No such claims will be valid unless so made.

50. CORRECTIONS OF WORK BEFORE FINAL PAYMENT ~ The Contractor must promptly remove from the premises all materials condemned by the CDFW Contract Manager as failing to conform to the contract, whether incorporated in the work or not, and the Contractor must promptly replace and re-execute the work in accordance with the contract and without expense to the State and will bear the expense of making good all work of other contractors destroyed or damaged by such removal or replacement.

If the Contractor does not remove such condemned work and materials within a reasonable time, fixed by written notice, the State may remove them and may store the material at the expense of the Contractor. If the Contractor does not pay for the expense of the removal

within ten (10) days' written notice, the State may sell such materials at auction or at private sale and will account for the net proceeds thereof, after deducting all the costs and expenses that should have been borne by the Contractor.

51. DEDUCTIONS OF UNCORRECTED WORK ~ If the CDFW Contract Manager deems it inexpedient to correct work damaged or done not in accordance with the contract, and equitable deduction from the contract price will be made therefor.

52. PAYMENT WITHHELD ~ Notwithstanding the issuance of a certificate as defined in Article 49, the State may withhold payment to such an extent as may be necessary to protect it from loss on account of:

A. Defective work not remedied

B. Claims filed or reasonable evidence indicating filing of claims

C. Failure of the Contractor to make payment properly to the subcontractors or for material or labor

D. A reasonable doubt that the contract can be completed for the balance then unpaid

E. Damage to another contractor

When the above grounds are removed, payment will be made for amounts withheld because of them.

53. LIQUIDATED DAMAGES ~ Failure of Contractor to complete the Work within the Contract Time will result in damages being sustained by State. It is and will be extremely difficult and impracticable to determine the actual damage which State will sustain by reason of such delay. Therefore, Contractor must pay to State, as liquidated damages, the sum of **TWO HUNDRED FIFTY DOLLARS ($250.00)** for each Calendar Day's delay in finishing the Work under this Contract beyond the stipulated number of days, or any adjustments thereof. State may deduct liquidated damages from funds due or that become due Contractor. Execution of the Contract will constitute acknowledgement by Contractor that Contractor has ascertained and agrees that State will suffer damages in the amount fixed herein.

Contractor will not be assessed liquidated damages when delay is caused by the failure of State or the owner of any utility to provide for removal or relocation of existing utility, facility, or to perform work as indicated in the Contract Documents.

54. GUARANTEE ~ The Contractor hereby unconditionally guarantees that the work will be done in accordance with the requirements of this contract, and further guarantees the work of the contract to be and remain free of defects in workmanship and materials for a period of one year from the date of acceptance of the contract, unless the contract specifically calls for a longer guarantee period. The Contractor hereby agrees to repair or replace all work, together with any other adjacent work which may have been damaged or displaced in so doing, that may prove to be not in accordance with the requirements of the contract or that may be defective in its workmanship or material within the guarantee period specified, without any expense whatsoever to the State, ordinary wear and tear and unusual abuse or neglect excepted. Corrective Work must be warranted to be free from defects for a period equal to the longer of six (6) months after the completion of the corrective Work or one (1) year after

the Date of Final Completion or such longer period as may be prescribed by law, or in equity, or expiration of the term of any applicable special warranty required by the Contract Documents whichever is longer.

The Contractor further agrees, that within ten (10) calendar days after being notified in writing by the State of any work not in accordance with requirements of the contract or any defects in the work, Contractor will commence and prosecute with due diligence all work necessary to fulfill terms of the guarantee, and to complete the work within a reasonable period of time, and in the event Contractor fails to so comply, Contractor does hereby authorize the State to proceed to have such work done at the Contractor's expense and Contractor will pay the cost thereof upon demand. The State will be entitled to all costs, including reasonable attorney fees, necessarily incurred upon Contractor's refusal to pay above cost.

Manufacturer's warranties for products or materials, which have guarantee periods exceeding the one-year Contractor's guarantee period, are to be in favor of the State and are to be delivered to the State by the Contractor.

55. SUPERINTENDENT- SUPERVISION ~ The Contractor will keep on the work during its progress, a competent superintendent, and any necessary assistants, all satisfactory to the CDFW Contract Manager. The superintendent must not be changed except with the consent of the CDFW Contract Manager unless the superintendent proves to be unsatisfactory to the Contractor and ceases to be in his or her employ. The superintendent must represent the Contractor in his or her absence and all directions given to him or her will be as binding as if given to the Contractor. Important directions must be confirmed in writing to the Contractor. Other directions must be confirmed on written request in each case. The Contractor must give efficient supervision to the work, using his or her best skill and attention.

56. APPRENTICES ~ Properly registered apprentices may be employed in the prosecution of the work. Every such apprentice will be paid the standard wage paid to apprentices under the regulations of the craft or trade at which Contractor is employed and must be employed only at the work of the craft or trade to which Contractor is registered. The Contractor and each subcontractor must comply with the requirements of Labor Code Section 1777.5 and any related regulations regarding the employment of registered apprentices.

Special attention is directed to Sections 1777.5, 1777.6 and 1777.7 of the California Labor Code and Title 8, California Administrative Code Section200 et seq. Each contractor and subcontractor must, prior to commencement of Public Works Contract, contact the Division of Apprenticeship Standards, 455 Golden Gate Avenue, San Francisco, California, 94102, or one of its branch offices to ensure compliance and complete understanding of the law regarding apprentices and specifically the required ration thereunder. Responsibility for compliance with this section lies with the Contractor.

57. WORKING HOURS ~ It is agreed that the maximum hours a worker is to be employed is limited to eight (8) hours a day and forty (40) hours a week and the Contractor will forfeit, as a penalty to the State, twenty-five dollars for each worker employed in the execution of the contract for each calendar day during which a worker is required or permitted to labor more than eight (8) hours in any calendar day or more than forty (40) hours in any calendar week in violation of Labor Code Sections 1810 to 1815, inclusive, except that work performed by employees of Contractor in excess of eight (8) hours a day, and forty (40) hours during any

one week, will be permitted upon compensation for all hours worked in excess of eight (80 hours a day at not less than one-and-one half (1.5) times the basic rate of pay, as provided in said Section 1815.

58. **ACCIDENTS AND ACCIDENT PREVENTION ~** The Contractor must provide, at the site, such equipment, and medical facilities as are necessary to supply first aid service to anyone who may be injured in connection with the work.

The Contractor will be responsible for accident prevention and safety in the performance of all of the work and will be governed by the requirements of this article in all operations at the site of the work.

The Contractor must comply with all applicable safety regulations and orders of the State of California, Department of Industrial Relations, Division of Occupational Safety and Health and all applicable provisions of the California Health and Safety Code and will take or cause to be taken such additional measures as may be necessary for the prevention of accidents. The Contractor must impose the foregoing requirements on all subcontractors and enforce compliance therewith.

59. **PREVAILING WAGE ~** The Contractor must comply with Labor Code, Section 1774 and 1775. Pursuant to Section 1774, the Contractor, and any subcontractors, regardless of tier, will pay not less than the specified prevailing wage rates to all workers employed in the execution of the Contract. In accordance with Section 1775, the Contractor and any subcontractor under the Contractor will forfeit to the State not more than Fifty Dollars ($50) for each calendar day, or portion thereof, for each worker paid less than the prevailing wage rates for the work or craft, in which the worker is employed for any work executed under the Contract by the Contractor or by any subcontractor in violation of the provisions of the Labor Code; and, in particular, Labor Code, Section 1770 to 1780, inclusive. In addition to such forfeiture, the difference between such stipulated prevailing wage rates and the amount paid to each worker for each day, or portion thereof, will be paid to each underpaid worker by the Contractor or subcontractor. This provision will not apply to properly registered apprentices.

Pursuant to Labor Code, Section 1770, the Director of the Department of Industrial Relations has ascertained the general prevailing rate per diem wages and a general prevailing rate for legal holiday and overtime work for each craft required for execution of the Contract. The Contractor must obtain copies of the prevailing rate of per diem wages from the Department of Industrial Relations, Division of Labor Statistics & Research, PO Box 420603, San Francisco, CA 94142-0603, (415) 703-4780; or wage rates may be accessed on the internet at http://www.dir.ca.gov/DLSR/statistics_research.html. The Contractor is responsible to read, understand and comply with all the guidelines, including the fine print in the prevailing wage determinations; and must post a copy of the prevailing wage rates, specific to the Project, at the Project site.

Wage rates set forth are the minimum that may be paid by the Contractor. Nothing herein will be construed as preventing the Contractor from paying more than the minimum rates set. No extra compensation will be allowed by the State due to the inability of the Contractor to hire labor at minimum rates, nor for necessity for payment by the Contractor of subsistence, travel time, overtime, or other added compensations, all of which possibilities are elements to be

considered and ascertained to the Contractor's own satisfaction in preparing the Bid Form.

If it becomes necessary to employ crafts other than those listed in the General Prevailing Wage Rate booklet, the Contractor must contact the Division of Labor Statistics and Research as noted above. The rates thus determined will be applicable as minimum for the contract and incorporated in the bid. When the wage determination shows an expiration date (noted by a double asterisk **), to expire during the term of the contract, the Contractor must call or write the DIR to obtain the new rates and incorporate them in the bid to be applicable for the term of the contract.

The Contractor and each subcontractor, regardless of tier, must keep an accurate payroll record showing the names, addresses, social security numbers, work classifications, straight time and overtime hours worked each day and week, and the actual per diem wages paid to each journeyman, apprentice, worker, or other employee employed by the Contractor and/or subcontractor in connection with the Work. Payroll records must be certified and must be on forms provided by the Division of Labor Standards Enforcement or must contain the same information as those forms. The Contractor's and subcontractor's certified payroll records for each employee must be submitted with each payment request, covering the period of the payment request.

Contractor and subcontractor(s) must furnish electronic certified payroll records directly to the Labor Commissioner (aka Division of Labor Standards Enforcement).

60. LABOR COMPLIANCE MONITORING AND ENFORCEMENT ~ This project is subject to monitoring and enforcement by the Department of Industrial Relations (DIR), Compliance Monitoring Unit. All contractors and subcontractor(s), regardless of tier, will be required to comply with the Monitoring and Enforcement Program, including, but not limited to, contractor registration, submittal of electronic certified payroll reports directly to the DIR for contracts greater than Twenty-Five Thousand Dollars ($25,000) and cooperation with on-site monitoring by DIR personnel.

61. EMPLOYMENT OF UNDOCUMENTED ALIENS ~ "No state agency or department, as defined in Public Contract Code § 10357, that is subject to this code, must award a public works contract to a bidder or contractor, nor will a bidder or contractor be eligible to bid for or receive a public works contract, who has, in the preceding five (5) years, been convicted of violating a state or federal law regarding the employment of undocumented aliens. See Public Contract Code § 6101."

62. AIR OR WATER POLLUTION VIOLATIONS ~ Unless the contract is less than Twenty-Five Thousand Dollars ($25,000) or with a non-competitively bid contractor, Government Code Section § 4477 prohibits the State from contracting with a person, including a corporation or other business association, who has been determined to be in violation of any state or federal air or water pollution control law. Prior to an award, the State will ascertain if the intended awardee is a person included in notices from the Boards. In the event of any doubt of the intended awardee's identity or status as a person who is in violation of any state or federal air or water pollution law, the State will notify the appropriate Board of the proposed award and afford the board the opportunity to advise the Department that the intended awardee is such person. No award will be made to a person who is identified either by the published notices or by advice, as a person in violation of state or federal air or water pollution control laws.

63. **NATIONAL LABOR RELATIONS CERTIFICATION ~** By signing the contract, the Contractor swears under penalty of perjury that no more than one final unappealable finding of contempt of court by a federal court has been issued against the Contractor within the immediately preceding two (2) year period because of the contractor's failure to comply with an order of a federal court which orders the contractor to comply with an order of the National Labor Relations Board.

64. **SURFACE MINING AND RECLAMATION ACT ~** Imported borrow or aggregate material must come from a surface mine permitted under the Surface Mining and Reclamation Act of 1975 (SMARA), Public Resources Code § 2710, et seq., or from an exempt site.

    The Department of Conservation, Office of Mine Reclamation maintains a list of permitted mine sites. For list of permitted sites, go to: https://www.conservation.ca.gov/sitemap.

    If Contractor imports, borrows, or aggregates material from a surface not on this list, Contractor will submit proof that the mine is exempt from SMARA.

65. **PRIORITY HIRING CONSIDERATIONS ~ (Agreements over Two Hundred Thousand Dollars ($200,000))** The Contractor agrees to give priority consideration in filling vacancies in positions funded by the agreement to qualified recipients of aid under Welfare and Institutions Code Section 11200. (PCC 10353).

66. **AUDIT LANGUAGE ~ (For contracts in excess of Ten Thousand Dollars ($10,000) and/or when DVBE participation is required)** The contractor agrees that the (awarding agency/California Resources Agency), or the Bureau of State Audits or its designated representative, will have an absolute right of access to all of the contractor's records, files, documents, accounts, and financial affairs as deemed necessary for the purpose of conducting an audit to determine compliance with the terms and conditions of this contract. The Contractor must provide the auditor(s) with any relevant information requested without unnecessary delay and, on reasonable notice, permit access to its premises during normal business hours for the purpose of interviewing staff and inspecting and copying such books, records, accounts, and any other material as warranted to conduct the audit. The contractor further agrees to maintain such records for a period of three (3) years after final payment is made on this contract or three (3) years after resolution of all issues that may arise as a result of any litigation, claim, negotiation, or audit related to the contract, whichever is later. The State agrees to treat as confidential any proprietary information obtained as a part of any such audit.

67. **DVBE PARTICIPATION AND REPORTING REQUIREMENTS (Bids Exceeding Ten Thousand Dollars ($10,000)) ~ Pursuant to Public Contract Code (PCC) Section10115 et.seq., the Contractor shall use, employ and utilize Disabled Veteran Business Enterprise (DVBE) subcontractors, sub- subcontractors or material suppliers who were listed in their bid documents for DVBE Program participation, to the full extent of the amount of money and/or percentage of commitment manifested in the bid documents. If the Contractor wishes to substitute any listed DVBE subcontractors, sub-subcontractors or material suppliers for just and legal cause, the Contractor shall follow the dictates of PCC Sections 4107 and 10115.12b, as well as Military and Veterans Code (M&VC) Section 999.5(e) and California Code of Regulations, Title 2, Section 1896.64. The DVBE may only be replaced by another DVBE and shall obtain the written authorization of the State prior to any substitutions. The Contractor shall not unilaterally substitute a listed DVBE subcontractor, sub-subcontractor or**

material supplier.

Final retention will not be released until the Prime Contactor's DVBE Subcontracting Report (Form 810P) has been completed and returned to the CDFW Contract Manager.

At the end of the contract, the Contractor will be required to complete the Prime Contractor's DVBE Subcontracting Report (Form 810P) to certify that he/she has met all of their DVBE Obligations as identified in their Bid.

A. Use of Subcontractor(s)

The Contractor shall be responsible for all work performed. All persons engaged in the work will be considered employees of the Contractor. When any subcontractor fails to execute a portion of the work in a manner satisfactory to the State, the Contractor shall immediately remove such subcontractor upon written request of the State and the subcontractor shall not be employed for any portion of the contract. The State will not entertain requests to arbitrate disputes among subcontracts concerning responsibility for performing any part of the work.

B. Prime Contractor DVBE Subcontracting Form (Form 810P)

If the Contractor enters into a subcontract with a Disabled Veteran Business Enterprise (DVBE), the CDFW and the Contractor are required to follow Military and Veterans Code Section 999.5, 999.55 and 999.7. Upon request by CDFW, the Contractor shall provide proof of payment for the DVBE work.

Pursuant to the Military and Veterans Code (M&VC) Section 999.5, if the Contractor has entered into a subcontract with a DVBE, then the Contractor must certify to CDFW through the Contractor DVBE Subcontracting Form (Form PD 810P), before releasing final retention payment, all of the following:

(1) The total bid amount and the total final contract amount including contingencies the Contractor received under the contract.

(2) The name and address of the disabled veteran business enterprise that participated in the performance of the contract and the contract number.

(3) The amount and percentage of work the Contractor committed to provide to one or more disabled veteran business enterprises under the requirements of the contract and the amount each disabled veteran business enterprise received from the prime contractor.

(4) That all payments under the contract have been made to the disabled veteran business enterprise. Upon request by the CDFW, the Contractor shall provide proof of payment for the work. A person or entity that knowingly provides false information shall be subject to a civil penalty for each violation in the minimum amount of Two Thousand Five Hundred Dollars ($2,500) and the maximum amount of Twenty-Five Thousand Dollars ($25,000). An action for a civil penalty under this subdivision may be brought by any public prosecutor in the name of the people of the State of California and the penalty imposed shall be

enforceable as a civil judgment.

Pursuant to the M&VC Section 999.7, the CDFW will withhold Ten Thousand Dollars ($10,000) from the final payment, or the full final retention payment if less than Ten Thousand Dollars ($10,000), until the Contractor complies with the certification requirements of Military and Veterans Code Section 999.5. Contractors that fail to comply with the certification requirements shall be given notice and allowed to cure the defect. If after 15 calendar days but not more than thirty (30) calendar days from the date of the notice, the Contractor fails to comply with the certification requirements, the CDFW shall permanently deduct Ten Thousand Dollars ($10,000) from the final payment, or the full final retention payment if less than Ten Thousand Dollars ($10,000). The withholding applies to all procurement approaches with a DVBE subcontractor, as defined by M&VC Section 999(b)(4). Notwithstanding any other law, the CDFW shall not withhold more than the amount specified or the full final retention payment of any disabled veteran business enterprise contract for the purposes of ensuring compliance with the certification requirements of M&VC 999.5.

68. **EXECUTIVE ORDER N-6-22 – RUSSIA SANCTIONS ~** On March 4, 2022, Governor Gavin Newsom issued Executive Order N-6-22 (the EO) regarding Economic Sanctions against Russia and Russian entities and individuals. “Economic Sanctions” refers to sanctions imposed by the U.S. government in response to Russia’s actions in Ukraine, as well as any sanctions imposed under state law. The EO directs state agencies to terminate contracts with, and to refrain from entering any new contracts with, individuals or entities that are determined to be a target of Economic Sanctions. Accordingly, should the State determine Contractor is a target of Economic Sanctions or is conducting prohibited transactions with sanctioned individuals or entities, that shall be grounds for termination of this agreement. The State shall provide Contractor advance written notice of such termination, allowing Contractor at least thirty (30) calendar days to provide a written response. Termination shall be at the sole discretion of the State.

69. **GENAI TECHNOLOGY USE & REPORTING ~** During the term of the contract, Contractor must notify the State in writing if their services or any work under this contract includes, or makes available, any previously unreported GenAI technology, including GenAI from third parties or subcontractors. Contractor shall immediately complete the GenAI Reporting and Factsheet (STD 1000) to notify the State of any new or previously unreported GenAI technology. At the direction of the State, Contractor shall discontinue the use of any new or previously undisclosed GenAI technology that materially impacts functionality, risk or contract performance, until use of such GenAI technology has been approved by the State.

    Failure to disclose GenAI use to the State and submit the GenAI Reporting and Factsheet (STD 1000) may be considered a breach of the contract by the State at its sole discretion and the State may consider such failure to disclose GenAI and/or failure to submit the GenAI Reporting and Factsheet (STD 1000) as grounds for the immediate termination of the contract. The State is entitled to seek any and all relief it may be entitled to as a result of such non-disclosure.

    The State reserves the right to amend the contract, without additional cost, to incorporate GenAI Special Provisions into the contract at its sole discretion and/or terminate any contract that presents an unacceptable level of risk to the State.

STATE OF CALIFORNIA

STANDARD CALIFORNIA NONDISCRIMINATION CONSTRUCTION CONTRACT SPECIFICATIONS

(GOVERNMENT CODE, SECTION 12990)

STD. 18 (REV. 1/95)

These specifications are applicable to all state contractors and subcontractors having a construction contract or subcontract of $5,000 or more.

1. As used in the specifications:

   a. **"Administrator"** means Administrator, Office of Compliance Programs, California Department of Fair Employment and Housing (DFEH), or any person to whom the Administrator delegates authority;

   b. **"Minority"** includes:

   (i) **Black** (all persons having primary origins in any of the black racial groups of Africa, but not of Hispanic origin);

   (ii) **Hispanic** (all persons of primary culture or origin in Mexico, Puerto Rico, Cuba, Central or South America or other Spanish derived culture or origin regardless of race);

   (iii) **Asian/Pacific Islander** (all persons having primary origins in any of the original peoples of the Far East, Southeast Asia, the Indian Subcontinent or the Pacific Islands); and

   (iv) **American Indian/Alaskan Native** (all persons having primary origins in any of the original peoples of North America and who maintain culture identification through tribal affiliation or community recognition).

2. Whenever the contractor or any subcontractor subcontracts a portion of the work, it shall physically include in each subcontract of $5,000 or more the nondiscrimination clause in this contract directly or through incorporation by reference. Any subcontract for work involving a construction trade shall also include the Standard California Construction Contract Specifications either directly or through incorporation by reference. Any subcontract for work involving a construction trade shall also include the Standard California Construction Contract Specifications, either directly or through incorporation by reference.

3. The contractor shall implement the specific nondiscrimination standards provided in paragraphs 6(a) through (e) of these specifications.

4. Neither the provisions of any collective bargaining agreement, nor the failure by a union with whom the contractor has a collective bargaining agreement, to refer either minorities or women shall excuse the contractor's obligations under these specifications, Government Code, Section 12990, or the regulations promulgated pursuant thereto.

5. In order for the nonworking training hours of apprentices and trainees to be counted, such apprentices and trainees must be employed by the contractor during the training period, and the contractor must have made a commitment to employ the apprentices and trainees at the completion of their training, subject to the availability of employment opportunities. Trainees must be trained pursuant to training programs approved by the U.S. Department of Labor or the California Department of Industrial Relations.

6. The contractor shall take specific actions to implement its nondiscrimination program. The evaluation of the contractor's compliance with these specifications shall be based upon its effort to achieve maximum results from its actions. The contractor must be able to demonstrate fully its efforts under Steps a. through e. below:

   a. Ensure and maintain a working environment free of harassment, intimidation, and coercion at all sites, and at all facilities at which the contractor's employees are assigned to work. The contractor, where possible, will assign two or more women to each construction project. The contractor shall specifically ensure that all leadpersons, superintendents, and other on-site supervisory personnel are aware of and carry out the contractor's obligations to maintain such a working environment, with specific attention to minority or female individuals working at such sites or in such facilities.

   b. Provide written notification within seven days to the director of DFEH when the union or unions with which the Contractor has a collective bargaining agreement has not referred to the Contractor a minority person or woman sent by the Contractor, or when the Contractor has other information that the union referral process has impeded the Contractor's efforts to meet its obligations.

   c. Disseminate the Contractor's equal employment opportunity policy by providing notice of the policy to unions and training, recruitment and outreach programs and requesting their cooperation in assisting the Contractor to meet its obligations; and by posting the company policy on bulletin boards accessible to all employees at each location where construction work is performed.

(Continue on reverse)

d. Ensure all personnel making management and employment decisions regarding hiring, assignment, layoff, termination, conditions of work, training, rates of pay or other employment decisions, including all supervisory personnel, superintendents, general leadpersons, on-site leadpersons, etc., are aware of the Contractor'sequal employment opportunity policy and obligations, and discharge their responsibilities accordingly.

e. Ensure that seniority practices, job classifications, work assignments and other personnel practices, do not have a discriminatory effect by continually monitoring all personnel and employment related activities to ensure that the equal employment opportunity policy and the Contractor'sobligations under these specifications are being carried out.

7. Contractors are encouraged to participate in voluntary associations which assist in fulfilling their equal employment opportunity obligations. The efforts of a contractor association, joint contractor-union, contractor-community, or other similar group of which the contractor is a member and participant, may be asserted as fulfilling any one or more of its obligations under these specifications provided that the contractor actively participates in the group, makes every effort to assure that the group has a positive impact on the employment of minorities and women in the industry, ensures that the concrete benefits of the program are reflected in the Contractor's minority and female workforce participation, and can provide access to documentation which demonstrates the effectiveness of actions taken on behalf of the Contractor. The obligation to comply, however, is the Contractor's.

8. The Contractor is required to provide equal employment opportunity for all minority groups, both male and female, and all women, both minority and nonminority. Consequently, the Contractor may be in violation of the Fair Employment and Housing Act (Gov. Code Section 12990 et seq.) if a particular group is employed in a substantially disparate manner.

9. Establishment and implementation of a bona fide affirmative action plan pursuant to Section 8104(b) of this Chapter shall create a rebuttable presumption that a contractor is in compliance with the requirements of Section 12990 of the Government Code and its implementing regulations.

10. The Contractor shall not use the nondiscrimination standards to discriminate, harass or allow harassment against any person because of race, color, religious creed, sex, national origin, ancestry, disability (including HIV and AIDS), medical condition (cancer), age, marital status, or denial of family and medical care leave and denial of pregnancy disability leave.

11. The Contractor shall not enter into any subcontract with any person or firm decertified from state contracts pursuant to Government Code Section 12990.

12. The Contractor shall carry out such sanctions and penalties for violation of these specifications and the nondiscrimination clause, including suspension, termination and cancellation of existing subcontracts as may be imposed or ordered pursuant to Government Code Section 12990 and its implementing regulations by the awarding agency. Any Contractor who fails to carry out such sanctions and penalties shall be in violation of these specifications and Government Code Section 12990.

13. The Contractor shall designate a responsible official to monitor all employment related activity to ensure that the company equal employment opportunity policy is being carried out, to submit reports relating to the provisions hereof as may be required by OCP and to keep records. Records shall at least include for each employee the name, address, telephone numbers, construction trade, union affiliation if any, employee identification number when assigned, social security number, race, sex, status, (e.g., mechanic, apprentice trainee, helper or laborer), dates of changes in status, hours worked per week in the indicated trade, rate of pay, and locations at which the work was performed. Records shall be maintained in any easily understandable and retrievable form; however, to the degree that existing records satisfy this requirement, contractors shall not be required to maintain separate records.